

|                                                                                                   |  |                                   |                                                              |                                                                         |                                               |                             |              |
|---------------------------------------------------------------------------------------------------|--|-----------------------------------|--------------------------------------------------------------|-------------------------------------------------------------------------|-----------------------------------------------|-----------------------------|--------------|
| <b>SOLICITATION, OFFER AND AWARD</b>                                                              |  |                                   | 1. THIS CONTRACT IS A RATED ORDER<br>UNDER DPAS (15 CFR 700) |                                                                         | RATING                                        | PAGE OF PAGES<br>1 55       |              |
| 2. CONTRACT NO.                                                                                   |  | 3. SOLICITATION NO.<br>[REDACTED] |                                                              | 4. TYPE OF SOLICITATION<br>[ ] SEALED BID (IFB)<br>[X] NEGOTIATED (RFP) | 5. DATE ISSUED                                | 6. REQUISITION/PURCHASE NO. |              |
| 7. ISSUED BY<br>NAWCAD PROCUREMENT GROUP<br>21983 BUNDY ROAD, BLDG 441<br>PATUXENT RIVER MD 20670 |  |                                   | CODE                                                         | N00421                                                                  | 8. ADDRESS OFFER TO<br>(If other than Item 7) |                             | CODE         |
| TEL:<br>FAX:                                                                                      |  |                                   | See Item 7                                                   |                                                                         |                                               |                             | TEL:<br>FAX: |

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".

### SOLICITATION

9. Sealed offers in original and \_\_\_\_\_ copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in \_\_\_\_\_ until \_\_\_\_\_ local time \_\_\_\_\_ (Hour) (Date)

CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

|                           |         |                                                     |                   |
|---------------------------|---------|-----------------------------------------------------|-------------------|
| 10. FOR INFORMATION CALL: | A. NAME | B. TELEPHONE (Include area code) (NO COLLECT CALLS) | C. E-MAIL ADDRESS |
|---------------------------|---------|-----------------------------------------------------|-------------------|

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### OFFER (Must be fully completed by offeror)

NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within \_\_\_\_\_ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

|                                                                         |  |
|-------------------------------------------------------------------------|--|
| 13. DISCOUNT FOR PROMPT PAYMENT<br>(See Section I, Clause No. 52.232-8) |  |
|-------------------------------------------------------------------------|--|

|                                                                                                                                                                 |               |      |               |      |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------|------|---------------|------|
| 14. ACKNOWLEDGMENT OF AMENDMENTS<br>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated): | AMENDMENT NO. | DATE | AMENDMENT NO. | DATE |
|                                                                                                                                                                 |               |      |               |      |
|                                                                                                                                                                 |               |      |               |      |

|                                  |      |          |                                                                       |
|----------------------------------|------|----------|-----------------------------------------------------------------------|
| 15A. NAME AND ADDRESS OF OFFEROR | CODE | FACILITY | 16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print) |
|----------------------------------|------|----------|-----------------------------------------------------------------------|

|                                       |                                                                                                                        |               |                |
|---------------------------------------|------------------------------------------------------------------------------------------------------------------------|---------------|----------------|
| 15B. TELEPHONE NO (Include area code) | 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE.<br><input type="checkbox"/> | 17. SIGNATURE | 18. OFFER DATE |
|---------------------------------------|------------------------------------------------------------------------------------------------------------------------|---------------|----------------|

### AWARD (To be completed by Government)

|                                                                                                                                                             |            |                                                                                  |      |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------|------------|----------------------------------------------------------------------------------|------|
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                           | 20. AMOUNT | 21. ACCOUNTING AND APPROPRIATION                                                 |      |
| 22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION:<br><input type="checkbox"/> 10 U.S.C. 2304(c)( ) <input type="checkbox"/> 41 U.S.C. 253(c)( ) |            | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified) | ITEM |
| 24. ADMINISTERED BY (If other than Item 7)                                                                                                                  | CODE       | 25. PAYMENT WILL BE MADE BY                                                      | CODE |
| 26. NAME OF CONTRACTING OFFICER (Type or print)<br><br>TEL: EMAIL:                                                                                          |            | 27. UNITED STATES OF AMERICA<br>(Signature of Contracting Officer)               |      |
|                                                                                                                                                             |            | 28. AWARD DATE                                                                   |      |

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

## Section B - Supplies or Services and Prices

| ITEM NO | SUPPLIES/SERVICES                                                                                                                            | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---------|----------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001    | Capability Stand up, Lot 1<br>FFP<br>See CLIN description in Section C and Attachment 1 PWS, Section 4.0<br>FOB: Destination<br>PSC CD: V121 | 1        | Lot  |            |        |

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NET AMT

| ITEM NO | SUPPLIES/SERVICES                                                                                                                            | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---------|----------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0002    | Capability Stand up, Lot 2<br>FFP<br>See CLIN description in Section C and Attachment 1 PWS, Section 4.0<br>FOB: Destination<br>PSC CD: V121 | 1        | Lot  |            |        |

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NET AMT

| ITEM NO | SUPPLIES/SERVICES                                                                                  | QUANTITY | UNIT   | UNIT PRICE | AMOUNT |
|---------|----------------------------------------------------------------------------------------------------|----------|--------|------------|--------|
| 0003    | Monthly Fixed Rate<br>FFP<br>See CLIN description in Section C<br>FOB: Destination<br>PSC CD: V121 |          | Months |            |        |

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NET AMT

| ITEM NO | SUPPLIES/SERVICES                                                                                                    | QUANTITY | UNIT    | UNIT PRICE | AMOUNT |
|---------|----------------------------------------------------------------------------------------------------------------------|----------|---------|------------|--------|
| 0004    | Flight Services<br>FFP<br>See CLIN description in Section C and Attachment 1 PWS<br>FOB: Destination<br>PSC CD: V121 | 96,000   | Minutes |            |        |

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NET AMT

| ITEM NO | SUPPLIES/SERVICES                                                                                                                                | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|---------|--------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0005    | Administrative/Technical Data<br>FFP<br>See CLIN description in Section C and Attachment 1 PWS, Section 10.0<br>FOB: Destination<br>PSC CD: V121 | 1        | Lot  |            |        |

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NET AMT

CLAUSES INCORPORATED BY FULL TEXT

**BTXT.216-9506 MINIMUM AND MAXIMUM QUANTITIES (NAVAIR)(MAR 1999)**

As referred to in paragraph (b) of FAR 52.216-22 " Indefinite Quantity" of this contract, the contract minimum quantity is the **total quantity of CLIN 0001**; the maximum quantity is **the total contract ceiling**.

## Section C - Descriptions and Specifications

### EXTENDED CLIN DESCRIPTIONS

#### **CLIN 0001 – CAPABILITY STAND-UP, LOT 1 (FIRM-FIXED PRICE)**

The contractor shall execute initial capability stand-up tasks related to pre-operational readiness and aircraft modification. This CLIN covers all costs associated with achieving Performance Work Statement (PWS), Appendix D, Milestone A requirements. Attendance at the Post Award Conference (PAC) is required and shall be included under this CLIN. Activities include the successful completion and Government approval of all required operational and safety documentation (GOPs, FOPs, Management Plan, Mishap Response Plan), successful completion of all aircraft modifications, and the successful execution of both the Physical and Functional Configuration Audits (PCA/FCA). This CLIN is considered complete upon the Government's formal approval of the PAO Airworthiness Checklist Substantiation Package and the successful demonstration of the static launch system.

#### **CLIN 0002 – CAPABILITY STAND-UP, LOT 2 (FIRM-FIXED PRICE)**

The contractor shall execute final capability stand-up tasks related to full operational capability and flight readiness. This CLIN covers all costs associated with achieving PWS Appendix D, Milestone B requirements, culminating in the aircraft being declared Safe-for-Flight (SFF). This CLIN will not be awarded until CLIN 0001 has been successfully completed and accepted by the Government. Activities include final personnel hiring and contractor facility standup, and completion of all personnel training and certification for pilots, operators, and maintenance staff. This CLIN is considered complete only after the successful completion of the System Readiness Review (SRR), the Government Flight Representative (GFR) inspection, and the final Safe-for-Flight (SFF) inspection.

#### **CLIN 0003 – MONTHLY FIXED COST (FIRM-FIXED PRICE)**

The contractor shall maintain operational readiness of personnel, equipment, and facilities to support sonobuoy testing missions. This includes providing labor, ensuring aircraft availability, maintaining ground support equipment, obtaining and maintaining required certifications, and meeting performance metrics as defined in the PWS. Payment under this CLIN shall be made monthly for sustained readiness, regardless of the number of flight hours executed. The contractor shall also attend and participate in semi-annual Program Management Reviews (PMRs). This CLIN will not be awarded until CLIN 0002 has been successfully completed and accepted by the Government.

#### **CLIN 0004 – FLIGHT SERVICES (FIRM-FIXED PRICE)**

The contractor shall perform airborne operations to support sonobuoy lot acceptance testing as directed by the Government. These operations shall include the safe launch and tracking of sonobuoys, data capture, and return-to-base procedures. All services under this CLIN shall be performed using aircraft and crews that comply with applicable Federal Aviation Administration (FAA), Department of Defense (DoD), and PWS requirements. Billing for this CLIN shall be based on the number of flight hours or minutes executed, as recorded and verified by Government personnel. This CLIN will not be awarded until CLIN 0002 has been successfully completed and accepted by the Government.

#### **CLIN 0005 – ADMINISTRATIVE & TECHNICAL DATA (NOT SEPARATELY PRICED )**

The contractor shall provide all required technical and administrative data in accordance with the Contract Data Requirements List (CDRL) specified in Exhibit A and as outlined in paragraph 10.0 of the PWS. This CLIN is not separately priced.

## CLAUSES INCORPORATED BY FULL TEXT

### **CTXT.204-9505 SYSTEM AUTHORIZATION ACCESS REQUEST (SAAR) REQUIREMENTS FOR INFORMATION TECHNOLOGY (IT) (NAVAIR) (FEB 2025)**

(a) Contractor personnel assigned to perform work under this contract may require access to Navy Information Technology (IT) resources (e.g., computers, laptops, personal electronic devices/personal digital assistants (PEDs/PDAs), NMCI, RDT&E networks, websites such as MyNAVAIR, and Navy Web servers requiring Common Access Card (CAC) Public Key Infrastructure (PKI)). Contractor personnel (prime, subcontractor, consultants, and

temporary employees) requiring access to Navy IT resources (including those personnel who previously signed SAAR DD Form 2875) shall submit a completed System Authorization Access Request (SAAR) DD Form 2875 or latest version thereof, and have initiated the requisite background investigation (or provide proof of a current background investigation) prior to accessing any Navy IT resources. The form and instructions for processing the SAAR form are available at: [https://www.esd.whs.mil/Directives/forms/dd2500\\_2999/DD2875/](https://www.esd.whs.mil/Directives/forms/dd2500_2999/DD2875/).

(b) SAAR forms will be submitted by the contractor's Facility Security Officer (FSO) via the National Help Desk Service Management (NHDSM) Service Catalog at: <https://nhdsm.navair.navy.mil>. For those contractors that do not have a FSO or that cannot access the NHDSM, or for NAVAIR organizations that have not transitioned to the NHDSM SAAR system, SAAR forms shall be submitted directly to the designated SAAR Government Sponsor or Technical Point Of Contact (TPOC). Copies of the approved SAAR forms may be obtained through the designated SAAR Government Sponsor or TPOC. Resources related to the SAAR process and step by step instructions can be found at the following link for those with access to Flank Speed: [https://flankspeed.sharepoint-mil.us/sites/NAVAIR\\_NAWCAD\\_DNA/SitePages/SAAR.aspx](https://flankspeed.sharepoint-mil.us/sites/NAVAIR_NAWCAD_DNA/SitePages/SAAR.aspx). For additional questions or information related to the SAAR process and requirements, please contact the National Help Desk at 301-342-3104 or 1-888-292-5919.

(c) In order to maintain access to Navy IT resources, the contractor shall ensure completion of initial and annual IA/Cyber Awareness training, monitor expiration of requisite background investigations, and initiate re-investigations as required. If requested, the contractor shall provide to the designated SAAR Government Sponsor or TPOC documentation sufficient to prove that it is monitoring/tracking the SAAR requirements for its employees who are accessing Navy IT resources. For those contractor personnel not in compliance with the requirements of this text, access to Navy IT resources will be denied/revoked.

(d) The SAAR form remains valid throughout contractual performance, inclusive of performance extensions and option exercises where the contract number does not change. Contractor personnel are required to submit a new SAAR form only when they begin work on a new or different contract.

#### **CTXT.211-9509 INCORPORATION OF THE CONTRACTOR'S TECHNICAL PROPOSAL (NAVAIR) (OCT 2005)**

The Contractor's Technical Proposal Number [Enter technical proposal number], dated [Enter document date], and any amendments/addendums thereof, is incorporated herein by reference, unless otherwise specified, with the same force and effect as if set forth in full text. Nothing in the Contractor's proposal shall constitute a waiver of any of the provisions of the contract, including the Statement(s) of Work and Specification. For purposes of FAR Clause 52.215-8, "Order of Precedence", the Contractor's technical proposal shall be considered a "Specification" but the Government's Specification shall take precedence over the Contractor's technical proposal.

Section D - Packaging and Marking

CLAUSES INCORPORATED BY FULL TEXT

**DTXT.247-9507 PACKAGING AND MARKING OF REPORTS (NAVAIR)(OCT 2021)**

(a) All unclassified data shall be prepared for shipment in accordance with best commercial practice. Classified reports, data and documentation, if any, shall be prepared for shipment in accordance with the National Industry Security Program Operating Manual, 32 CFR Part 117.

(b) The contractor shall prominently display on the cover of each report the following information:

- (1) Name and business address of contractor.
- (2) Contract Number/Delivery/Task order number.
- (3) Contract/Delivery/Task order dollar amount.
- (4) Whether the contract was competitively or non-competitively awarded.
- (5) Name of sponsoring individual.
- (6) Name and address of requiring activity.

**DTXT.247-9508 PROHIBITION AND LIMITATIONS FOR PACKAGING MATERIALS (NAVAIR) (AUG 2019)**

The use of loose fill materials, asbestos, excelsior, newspaper and shredded paper (all types) are prohibited. In addition, all Wood Packaging Materials (WPM) shall be heat treated or chemically treated in accordance with the requirements of the International Standards for Phytosanitary Measures (ISPM) 15:2009, "Regulation of Wood Packaging Material in International Trade."

**DTXT.247-9514 TECHNICAL DATA PACKING INSTRUCTIONS (NAVAIR) (FEB 2025)**

Technical Data and Information produced or handled in support of this contract shall be packed and packaged for domestic shipment in accordance with best commercial practices. The package or envelope should be clearly marked with any special markings specified in this contract (or delivery/task order), e.g., Contract Number, CLIN, Device No., and document title must be on the outside of the package. Classified reports, data and documentation, if applicable, shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM) codifying 32 Code of Federal Regulation Part 117, NIPSOM Rule.

## Section E - Inspection and Acceptance

## INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

| CLIN | INSPECT AT  | INSPECT BY | ACCEPT AT   | ACCEPT BY  |
|------|-------------|------------|-------------|------------|
| 0001 | Destination | Government | Destination | Government |
| 0002 | Destination | Government | Destination | Government |
| 0003 | Destination | Government | Destination | Government |
| 0004 | Destination | Government | Destination | Government |
| 0005 | Destination | Government | Destination | Government |

## CLAUSES INCORPORATED BY REFERENCE

|          |                                           |          |
|----------|-------------------------------------------|----------|
| 52.246-4 | Inspection Of Services--Fixed Price       | AUG 1996 |
| 52.246-5 | Inspection Of Services Cost-Reimbursement | APR 1984 |

## CLAUSES INCORPORATED BY FULL TEXT

**ETXT.246-9512 INSPECTION AND ACCEPTANCE (NAVAIR)(OCT 2005)**

(a) Inspection and acceptance of the supplies or services to be furnished hereunder shall be performed by the **COR. Each order will include DFARS Clause 252.232-7006 Wide Area Workflow Payment Instructions.**

(b) Acceptance of all Contract Line Items/Sub Line Items (CLINs/SLINs) shall be made by signature of the accepting authority on a DD 250 submitted through the WAWF system. Acceptance will only occur when the accepting authority is sure that inspections performed demonstrate compliance with contract requirements.

**ETXT.246-9514 INSPECTION AND ACCEPTANCE OF TECHNICAL DATA AND INFORMATION (NAVAIR)(FEB 1995)**

Inspection and acceptance of technical data and information will be performed by the Procuring Contracting Officer (PCO) or his duly authorized representative. Inspection of technical data and information will be performed by ensuring successful completion of the requirements set forth in the DD Form 1423, Contract Data Requirements List (CDRL) and incorporation/resolution of Government review comments on the data items. Acceptance will be evidenced by execution of an unconditional DD Form 250, Material Inspection and Receiving Report, as appropriate, and/or upon receipt of a second endorsement acceptance by the PCO on the attachment to this contract entitled [Section J, Exhibit A CDRLs]. The attached form will not be used for high cost data such as drawings, specifications, and technical manuals.



## Section F - Deliveries or Performance

## DELIVERY INFORMATION

| CLIN | DELIVERY DATE | QUANTITY | SHIP TO ADDRESS | DODAAC / CAGE |
|------|---------------|----------|-----------------|---------------|
| 0001 | N/A           | N/A      | N/A             | N/A           |
| 0002 | N/A           | N/A      | N/A             | N/A           |
| 0003 | N/A           | N/A      | N/A             | N/A           |
| 0004 | N/A           | N/A      | N/A             | N/A           |
| 0005 | N/A           | N/A      | N/A             | N/A           |

## CLAUSES INCORPORATED BY REFERENCE

|           |                          |          |
|-----------|--------------------------|----------|
| 52.242-15 | Stop-Work Order          | AUG 1989 |
| 52.242-17 | Government Delay Of Work | APR 1984 |
| 52.247-34 | F.O.B. Destination       | JAN 1991 |

## CLAUSES INCORPORATED BY FULL TEXT

**FTXT.211-9507 PERIOD OF PERFORMANCE (NAVAIR) (MAR 1999)**

(a) The contract shall commence on [insert effective date] and shall continue [insert “for a period of months” or provide a calendar date]. However, the period of performance may be extended in accordance with the option provisions contained herein.

(b) If FAR Clause 52.216-18, “Ordering”, is incorporated into this contract, then the period in which the Government can issue orders under the contract will be extended at the exercise of an option, and extended to the end of that option period.

**FTXT.247-9505 TECHNICAL DATA AND INFORMATION (NAVAIR)(FEB 1995)**

Technical Data and Information shall be delivered in accordance with the requirements of the Contract Data Requirements List, DD Form 1423, Exhibit A, attached hereto, and the following:

(a) The contractor shall concurrently deliver technical data and information per DD Form 1423, Blocks 12 and 13 (date of first/subsequent submission) to all activities listed in Block 14 of the DD Form 1423 (distribution and addresses) for each item. Complete addresses for the abbreviations in Block 14 are shown in paragraph (g) below. Additionally, the technical data shall be delivered to the following cognizant codes, who are listed in Block 6 of the DD Form 1423.

(1) PCO, Code NAWCAD Procurement Group.

(2) ACO, Code NAWCAD Procurement Group.

(b) Partial delivery of data is not acceptable unless specifically authorized on the DD Form 1423, or unless approved in writing by the PCO.

(c) The Government review period provided on the DD Form 1423 for each item commences upon receipt of all required data by the technical activity designated in Block 6.

(d) A copy of all other correspondence addressed to the Contracting Officer relating to data item requirements (i.e., status of delivery) shall also be provided to the codes reflected above and the technical activity responsible for the data item per Block 6, if not one of the activities listed above.

(e) The PCO reserves the right to issue unilateral modifications to change the destination codes and addresses for all technical data and information at no additional cost to the Government.

(f) Unless otherwise specified in writing, rejected data items shall be resubmitted within thirty (30) days after receipt of notice of rejection.

(g) DD Form 1423, Block 14 Mailing Addresses: [See Exhibit A](#)

## Section G - Contract Administration Data

## CLAUSES INCORPORATED BY REFERENCE

|              |                                                         |          |
|--------------|---------------------------------------------------------|----------|
| 52.213-3     | Notice to Suppliers                                     | APR 1984 |
| 252.201-7000 | Contracting Officer's Representative                    | DEC 1991 |
| 252.203-7002 | Requirement to Inform Employees of Whistleblower Rights | DEC 2022 |
| 252.231-7000 | Supplemental Cost Principles                            | DEC 1991 |
| 252.232-7006 | Wide Area WorkFlow Payment Instructions                 | JAN 2023 |

## CLAUSES INCORPORATED BY FULL TEXT

**GTXT.232-0001 PAYMENT INSTRUCTIONS (NAVAIR) (MAY 2023)**

| For Government Use Only                                                                                                                                                                                                                     |                                                  |        |         |              |                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------|--------|---------|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Contract/Order<br>Payment Clause                                                                                                                                                                                                            | Type of<br>Payment<br>Request                    | Supply | Service | Construction | Payment Office<br>Allocation Method                                                                                                                                                                                                                                                                                                                                                                                    |
| 52.212-4 (Alt I),<br>Contract Terms and<br>Conditions—<br>Commercial Products<br>and Commercial<br>Services;<br>52.216-7, Allowable<br>Cost and Payment;<br>52.232-7, Payments<br>Under Time-and-<br>Materials and Labor-<br>Hour Contracts | Cost Voucher                                     | X      | X       | N/A          | Line item specific proration.<br>If there is more than one ACRN<br>within a deliverable contract line<br>item, the funds will be allocated in<br>the same proportion as the<br>amount of funding currently<br>unliquidated for each ACRN on<br>the line item billed.                                                                                                                                                   |
| 52.232-1, Payments,<br>252.217-7007,<br>Payments<br>(vessel repair and alterations)                                                                                                                                                         | Navy<br>Shipbuilding<br>Invoice (Fixed<br>Price) | X      | X       | N/A          | Line item specific by fiscal year.<br>If there is more than one ACRN<br>within a deliverable line or<br>deliverable subline item, the funds will<br>be allocated using the<br>oldest funds first. In the event of<br>a deliverable line or deliverable<br>subline item with two or more<br>ACRNs with the same fiscal year,<br>those amounts will be prorated to<br>the available unliquidated funds<br>for that year. |
| 52.232-1, Payments;<br>52.232-2, Payments<br>Under Fixed-Price<br>Research and                                                                                                                                                              | Invoice                                          | X      | X       | N/A          | Line item specific proration.<br>If there is more than one ACRN<br>within a deliverable line item or<br>deliverable subline item, the                                                                                                                                                                                                                                                                                  |

| Development Contracts;<br>52.232-3, Payments Under Personal Services Contracts;<br>52.232-4, Payments Under Transportation Contracts and Transportation-Related Services Contracts; and<br>52.232-6, Payments Under Communication Service Contracts With Common Carriers |                              |        |         |              | funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the deliverable line or deliverable subline item for which payment is requested.                                                                                                                                                                                      |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|--------|---------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| For Government Use Only                                                                                                                                                                                                                                                  |                              |        |         |              |                                                                                                                                                                                                                                                                                                                                                                                       |
| Contract/Order Payment Clause                                                                                                                                                                                                                                            | Type of Payment Request      | Supply | Service | Construction | Payment Office Allocation Method                                                                                                                                                                                                                                                                                                                                                      |
| 52.232-5, Payments Under Fixed-Price Construction Contracts                                                                                                                                                                                                              | Construction Payment Invoice | N/A    | N/A     | X            | Line item specific by fiscal year. If there is more than one ACRN within a deliverable line or deliverable subline item, the funds will be allocated using the oldest funds first. In the event of a deliverable line or deliverable subline item with two or more ACRNs with the same fiscal year, those amounts will be prorated to the available unliquidated funds for that year. |
| 52.232-16, Progress Payments (excluding contracts with multiple lot progress payments)                                                                                                                                                                                   | Progress Payment*            | X      | X       | N/A          | Contract-wide proration. Funds shall be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN. Progress payments are considered contract level financing, and the "contract price" shall reflect the fixed-price portion of the contract per FAR 32.501-3.                                                                                   |

|                                                                                    |                   |   |   |     |                                                                                                                                                                                                                                                                                                                                                                      |
|------------------------------------------------------------------------------------|-------------------|---|---|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 52.232-16, Progress Payments;<br>252.232-7018, Progress Payments—<br>Multiple Lots | Progress Payment* | X | X | N/A | <p>Lot-wide proration (applies to lots specifically identified in the contract). If there is more than one ACRN within a lot, the funds will be allocated in the same proportion as the amount of funding currently unliquidated for each ACRN on the lot for which payment is requested.</p> <p>See PGI 204.7108 paragraph (c) for multiple lot CLIN structure.</p> |
|------------------------------------------------------------------------------------|-------------------|---|---|-----|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

| For Government Use Only                                                                                                                                                        |                                                      |        |         |              |                                                                                                                                                                                             |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------|--------|---------|--------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Contract/Order<br>Payment Clause                                                                                                                                               | Type of<br>Payment<br>Request                        | Supply | Service | Construction | Payment Office<br>Allocation Method                                                                                                                                                         |
| 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services;<br>52.232-30, Installment Payments for Commercial Products and Commercial Services | Commercial Product and Commercial Service Financing* | X      | X       | N/A          | Specified in approved payment. The contracting officer shall specify the amount to be paid and the account(s) to be charged for each payment approval in accordance with FAR 32.207(b)(2).  |
| 52.232-32, Performance-Based Payments                                                                                                                                          | Performance-Based Payments*                          | X      | X       | N/A          | Specified in approved payment. The contracting officer shall specify the amount to be paid and the account(s) to be charged for each payment approval in accordance with FAR 32.1007(b)(2). |
| 252.232-7002, Progress Payments for Foreign Military Sales Acquisitions                                                                                                        | Progress Payment*                                    | X      | X       | N/A          | Allocate costs among line items and countries in a manner acceptable to the administrative contracting officer.                                                                             |

\*Liquidation of Financing Payments. Liquidation will be applied by the payment office against those ACRNs which are identified by the payment instructions for the delivery payment and in keeping with the liquidation provision of the applicable contract financing clause (i.e., progress payment, performance-based payment, or commercial product and commercial service financing).

**GTXT.242-9511 CONTRACT ADMINISTRATION DATA (NAVAIR)(NOV 2017)**

(a) Contract Administration Office.

(1) Contract administration functions (see FAR 42.302(a) and DFARS 242.302(a)) are assigned to: See the ADMINISTERED BY Block on the face page of the contract, modification, or order.

(b) Special Instructions (see FAR 42.202(b) and (c)):

(1) The following contract administration functions are retained (see FAR 42.302(a) and DFARS 242.302(a)):

| Functions Retained                                        | Retained for Performance By: |
|-----------------------------------------------------------|------------------------------|
| FAR 42.302(a): (3) (4) (16) (51)                          | PCO                          |
| FAR 42.302(a): (3) (16) (30) (31) (38) (39) (58) and (67) | COR                          |
|                                                           |                              |
|                                                           |                              |

(2) The following additional contract administration functions are assigned (see FAR 42.302(b)):

| Additional Functions | Retained for Performance By: |
|----------------------|------------------------------|
| None                 | N/A                          |
|                      |                              |
|                      |                              |
|                      |                              |

(c) Inquiries regarding payment should be referred to: MyInvoice through the Wide Area Workflow eBusiness Suite: <https://wawf.eb.mil>.

## Section H - Special Contract Requirements

### CLAUSES INCORPORATED BY FULL TEXT

#### HTXT.209-9510 ORGANIZATIONAL CONFLICTS OF INTEREST (NAVAIR) (FEB 2025)

(a) Purpose. This requirement seeks to ensure that the contractor (1) does not obtain an unfair competitive advantage over other parties by virtue of its performance of this contract, and (2) is not biased because of its current or planned interests (financial, contractual, organizational or otherwise) that relate to the work under this contract.

(b) Scope. The restrictions described herein shall apply to performance or participation by the contractor (as defined in paragraph (d)(7)) in the activities covered by this requirement.

(1) The restrictions set forth in paragraph (e) apply to supplies, services, and other performance rendered with respect to the suppliers and/or equipment listed in Attachment 1. The contract will specify to which suppliers and/or equipment subparagraph (e) restrictions apply.

(2) The financial, contractual, organizational and other interests of contractor personnel performing work under this contract shall be deemed to be the interests of the contractor for the purposes of determining the existence of an organizational conflict of interest. Any subcontractor that performs any work relative to this contract shall be subject to this requirement. The contractor agrees to place in each subcontract affected by these provisions the necessary language contained in this requirement.

(3) In performance of this contract, the contractor shall also comply with the mitigation plan provided as Attachment N/A to this contract.

(c) Waiver. Any request for waiver pursuant to FAR 9.503 shall be submitted in writing to the Procuring Contracting Officer. The request for waiver shall set forth all relevant factors including proposed contractual safeguards or job procedures to mitigate conflicting roles that might produce an organizational conflict of interest. No waiver shall be granted by the Government with respect to prohibitions pursuant to access to proprietary data.

(d) Definitions. For purposes of application of this requirement only, the following definitions are applicable:

(1) "System" includes system, major component, subassembly or subsystem, project, or item.

(2) "Nondevelopmental items" as defined in FAR 2.101.

(3) "Systems Engineering" (SE) includes, but is not limited to, the activities in FAR 9.505-1(b).

(4) "Technical direction" (TD) includes, but is not limited to, the activities in FAR 9.505-1(b).

(5) "Advisory and Assistance Services" (AAS) as defined in FAR 2.101.

(6) "Consultant services" as defined in FAR 31.205-33(a).

(7) "Contractor", for the purposes of this requirement, means the firm signing this contract, its subsidiaries and affiliates, joint ventures involving the firm, any entity with which the firm may hereafter merge or affiliate, and any other successor or assignee of the firm.

(8) "Affiliates," means officers or employees of the prime contractor and first tier subcontractors involved in the program and technical decision-making process concerning this contract.

(9) "Interest" means organizational or financial interest.

(10) "Weapons system supplier" means any prime contractor or first tier subcontractor engaged in, or having a known prospective interest in the development, production or analysis of any of the weapon systems, as well as any major component or subassembly of such system.

(e) Contracting restrictions.

[ X ] (1) To the extent the contractor provides systems engineering and/or technical direction for a system or commodity but does not have overall contractual responsibility for the development, the integration, assembly and checkout or the production of the system, the contractor shall not (i) be awarded a contract to supply the system or any of its major components or (ii) be a subcontractor or consultant to a supplier of the system or of its major components. The contractor agrees that it will not supply to the Department of Defense (either as a prime contractor or as a subcontractor) or act as consultant to a supplier of, any system, subsystem, or major component utilized for or in connection with any item or other matter that is (directly or indirectly) the subject of the systems engineering and/or technical direction or other services performed under this contract for a period of three (3) years after the date of completion of the contract. (FAR 9.505-1(a))

[ X ] (2) To the extent the contractor prepares and furnishes complete specifications covering nondevelopmental items to be used in a competitive acquisition, the contractor shall not be allowed to furnish these items either as a prime contractor or subcontractor. This rule applies to the initial production contract, for such items plus a specified time period or event. The contractor agrees to prepare complete specifications covering non-developmental items to

be used in competitive acquisitions, and the contractor agrees not to be a supplier to the Department of Defense, subcontract supplier, or a consultant to a supplier of any system or subsystem for which complete specifications were prepared hereunder. The prohibition relative to being a supplier, a subcontract supplier, or a consultant to a supplier of these systems or their subsystems extends for a period of three (3) years after the terms of this contract. (FAR 9.505-2(a)(1))

[ X ] (3) To the extent the contractor prepares or assists in preparing a statement of work to be used in competitively acquiring a system or services or provides material leading directly, predictably and without delay to such a work statement, the contractor may not supply the system, major components thereof or the services unless the contractor is the sole source, or a participant in the design or development work, or more than one contractor has been involved in preparation of the work statement. The contractor agrees to prepare, support the preparation of or provide material leading directly, predictably and without delay to a work statement to be used in competitive acquisitions, and the contractor agrees not to be a supplier or consultant to a supplier of any services, systems or subsystems for which the contractor participated in preparing the work statement. The prohibition relative to being a supplier, a subcontract supplier, or a consultant to a supplier of any services, systems or subsystems extends for a period of three (3) years after the terms of this contract. (FAR 9.505-2(b)(1))

[ X ] (4) To the extent work to be performed under this contract requires evaluation of offers for products or services, a contract will not be awarded to a contractor that will evaluate its own offers for products or services, or those of a competitor, without proper safeguards to ensure objectivity to protect the Government's interests. Contractor agrees to the terms and conditions set forth in the statement of work that are established to ensure objectivity to protect the Government's interests. (FAR 9.505-3)

[ X ] (5) To the extent work to be performed under this contract requires access to proprietary data of other companies, the contractor must enter into agreements with such other companies which set forth procedures deemed adequate by those companies (i) to protect such data from unauthorized use or disclosure so long as it remains proprietary and (ii) to refrain from using the information for any other purpose other than that for which it was furnished. Evidence of such agreement(s) must be made available to the Procuring Contracting Officer upon request. The contractor shall restrict access to proprietary information to the minimum number of employees necessary for performance of this contract. Further, the contractor agrees that it will not utilize proprietary data obtained from such other companies in preparing proposals (solicited or unsolicited) to perform additional services or studies for the United States Government. The contractor agrees to execute agreements with companies furnishing proprietary data in connection with work performed under this contract, obligating the contractor to protect such data from unauthorized use or disclosure so long as such data remains proprietary, and to furnish copies of such agreement to the Contracting Officer. Contractor further agrees that such proprietary data shall not be used in performing for the Department of Defense additional work in the same field as work performed under this contract if such additional work is procured competitively. (FAR 9.505)

[ X ] (6) Preparation of Statements of Work or Specifications. If the contractor under this contract assists substantially in the preparation of a statement of work or specifications, the contractor shall be ineligible to perform or participate in any capacity in any contractual effort (solicited or unsolicited) that is based on such statement of work or specifications. The contractor shall not incorporate its products or services in such statement of work or specifications unless so directed in writing by the Contracting Officer, in which case the restrictions in this subparagraph shall not apply. Contractor agrees that it will not supply to the Department of Defense (either as a prime contractor or as a subcontractor) or act as consultant to a supplier of, any system, subsystem or major component utilized for or in connection with any item or work statement prepared or other services performed or materials delivered under this contract, and is procured on a competitive basis, by the Department of Defense with three (3) years after completion of work under this contract. The provisions of this requirement shall not apply to any system, subsystem, or major component for which the contractor is the sole source of supply or which it participated in designing or developing. (FAR 9.505-4(b))

[ X ] (7) Advisory and Assistance Services (AAS). If the contractor provides AAS services as defined in paragraph (d) of this requirement, it shall be ineligible thereafter to participate in any capacity in Government contractual efforts (solicited or unsolicited) which stem directly from such work, and the contractor agrees not to perform similar work for prospective offerors with respect to any such contractual efforts. Furthermore, unless so directed in writing by the Contracting Officer, the contractor shall not perform any such work under this contract on any of its products or services, or the products or services of another firm for which the contractor performs similar work. Nothing in this subparagraph shall preclude the contractor from competing for follow-on contracts for AAS.

(f) Remedies. In the event the contractor fails to comply with the provisions of this requirement, such noncompliance shall be deemed a material breach of the provisions of this contract. If such noncompliance is the



result of conflicting financial interest involving contractor personnel performing work under this contract, the Government may require the contractor to remove such personnel from performance of work under this contract. Further, the Government may elect to exercise its right to terminate for default in the event of such noncompliance. Nothing herein shall prevent the Government from electing any other appropriate remedies afforded by other provisions of this contract, or statute or regulation.

(g) Disclosure of Potential Conflicts of Interest. The contractor recognizes that during the term of this contract, conditions may change which may give rise to the appearance of a new conflict of interest. In such an event, the contractor shall disclose to the Government information concerning the new conflict of interest. The contractor shall provide, as a minimum, the following information:

- (1) a description of the new conflict of interest (e.g., additional weapons systems supplier(s), corporate restructuring, new first-tier subcontractor(s), new contract) and identity of parties involved;
- (2) a description of the work to be performed;
- (3) the dollar amount;
- (4) the period of performance; and
- (5) a description of the contractor's internal controls and planned actions, to avoid any potential organizational conflict of interest.

#### **HTXT.216-9512 PAPERLESS CONTRACTING (NAVAIR)(JUN 2009)**

(a) Orders and requests for proposals are hereby authorized to be issued by facsimile or by electronic commerce (including e-mail and paperless methods of delivery). Nothing in this contract should be read to prohibit these types of orders. In the event of a conflict with any other provision of this contract, this clause shall govern.

(b) To the extent the terms "written", "mailed", or "physically delivered" appear in other provisions of this contract, these terms are hereby defined to explicitly include electronic commerce, email, or paperless delivery methods.

#### **HTXT.216-9534 TASK ORDER PROCEDURES (NAVAIR) (OCT 2005)**

(a) The following activity (ies) or individual(s) is/are designated as Ordering Officer(s): NAWCAD Contracting Officer (N00421)

The above activity (ies) or individual(s) is/are responsible for issuing and administering any orders placed hereunder. Ordering Officers may negotiate revisions/modifications to orders, but only within the scope of this contract. Ordering Officers have no authority to modify any provision of this basic contract. Any deviation from the terms of the basic contract must be submitted to the Procuring Contracting Officer (PCO) for contractual action. Ordering Officers may enter into mutual no cost cancellations of orders under this contract and may reduce the scope of orders/tasks, but a Termination for Convenience or Termination for Default may only be issued by the PCO.

(b) Task orders. All orders issued hereunder are subject to the terms and conditions of this contract. The contract shall control in the event of conflict with any order. When mailed, an order shall be "issued" for purposes of this contract at the time the Government deposits the order in the mail, or, if transmitted by other means, when physically delivered to the contractor.

(c) A task order shall be issued for each order. In addition to any other data that may be called for in the contract, the following information shall be specified in each order, as applicable:

- (1) Date of order.
- (2) Contract and task order number.
- (3) Applicable contract line item number (CLIN).
- (4) Description of the task to be performed.
- (5) Description of the end item or service.
- (6) DD Form 254 (Contract Security Classification).
- (7) DD Form 1423 (Contract Data Requirements List).
- (8) Exact place of performance.

- (9) The inspecting and accepting codes.
- (10) Estimated cost and fee and level of effort by labor category (and billing rate if known).
- (11) List of Government furnished property and the estimated value of the property.
- (12) Invoice and payment provisions to the extent not covered by the contract.
- (13) Accounting and appropriation data.
- (14) Period of performance.
- (15) Organizational Conflict of Interest provisions.
- (16) Type of order (e.g., completion, term, FFP)

(d) Negotiated Agreement. For task orders with an estimated value of greater than \$[insert dollar threshold], the information contained in each task order with respect to labor categories, man-hours and delivery date shall be the result of a negotiated agreement reached by the parties in advance of issuance of the order.

(1) The Ordering Officer shall furnish the contractor with a written preliminary task order and request for proposal. The request shall include:

- (i) a description of the specified work required,
- (ii) the desired delivery schedule,
- (iii) the place and manner of inspection and acceptance, and

(2) The contractor shall, within the time specified by the preliminary task order, provide the Ordering Officer with a proposal to perform, which shall include:

- (i) the required number of labor hours by labor classification and scheduled billing rates, for each end product or task,
- (ii) overtime hours by labor category,
- (iii) proposed completion or delivery dates,
- (iv) other direct costs (i.e., direct material, travel subsistence, and similar costs)
- (v) dollar amount and type of any proposed subcontracts, and
- (vi) total estimated cost/price.

The cost factors utilized in determining the estimated cost/price under any order shall be the rates applicable at time the order is issued.

(3) Upon receipt of the proposal, the Ordering Officer shall review the estimates therein to ensure acceptability to the Government, enter into such discussions with the contractor as may be necessary to correct and revise any discrepancies in the proposal, and effect whatever internal review procedures are required. Should the Ordering Officer and contractor be unable to reach agreement as to the terms of the order prior to its issuance, the conflict shall be referred to the Contracting Officer.

(4) For task orders under the dollar amount indicated in paragraph (d), the procedures for reaching agreement are as follows:

(i) The Ordering Officer shall issue a fully funded, unilaterally executed task order representing a firm order for the total requirement.

(ii) In the event the contractor cannot perform in accordance with the terms and conditions and within the estimated cost of the task order, he shall:

- (A) notify the Ordering Officer immediately,
- (B) submit a proposal for the work requested in the task order,
- (C) not commence performance until such time that differences between the task order and the contractor's proposal are resolved and a modification, if necessary, is issued.

(e) Total Estimated Dollar Amount. The total estimated dollar amount of each order constitutes a ceiling price for that order. The requirements for notification set forth in Federal Acquisition Regulation N/A are applicable to individual task orders. The ceiling amount for each order may not be exceeded unless authorized by a modification to the order. All revisions providing additional funds to a task order will include fee in the same manner as established in the basic task order.

(f) Oral Orders. Oral orders may be placed hereunder only in emergency circumstances. Information described above shall be furnished to the contractor at the time of placing an oral order and shall be confirmed by issuance of a written task order within N/A working days of the oral order.

(g) Modifications. Modifications to orders shall be issued using a Standard Form 30 and shall include the information set forth in paragraph (c) above, as applicable. Orders may be modified orally by the Ordering Officer in emergency circumstances. (Oral modifications shall be confirmed by issuance of a written modification on Standard Form 30 within N/A working days from the time of the oral communication amending the order.)

**HTXT.227-9511 DISCLOSURE, USE AND PROTECTION OF PROPRIETARY INFORMATION  
(NAVAIR)(FEB 2009)**

(a) During the performance of this contract, the Government may use an independent services contractor (ISC), who is neither an agent nor employee of the Government. The ISC may be used to conduct reviews, evaluations, or independent verification and validations of technical documents submitted to the Government during performance.

(b) The use of an ISC is solely for the convenience of the Government. The ISC has no obligation to the prime contractor. The prime contractor is required to provide full cooperation, working facilities and access to the ISC for the purposes stated in paragraph (a) above.

(c) Since the ISC is neither an employee nor an agent of the Government, any findings, recommendations, analyses, or conclusions of such a contractor are not those of the Government.

(d) The prime contractor acknowledges that the Government has the right to use ISCs as stated in paragraph (a) above. It is possible that under such an arrangement the ISC may require access to or the use of information (other than restricted cost or pricing data), which is proprietary to the prime contractor.

(e) To protect any such proprietary information from disclosure or use, and to establish the respective rights and duties of both the ISC and prime contractor, the prime contractor agrees to enter into a direct agreement with any ISC as the Government requires. A properly executed copy (per FAR 9.505-4) of the agreement will be provided to the Procuring Contracting Officer.

**HTXT.228-9501 LIABILITY INSURANCE (NAVAIR) (MAR 1999)**

The following types of insurance are required in accordance with the clause entitled, FAR 52.228-5, "Insurance-- Work on a Government Installation" and shall be maintained in the minimum amounts shown:

(a) Comprehensive General Liability: \$200,000 per person and \$500,000 per accident for bodily injury.

(b) Automobile Insurance: \$200,000 per person and \$500,000 per accident for bodily injury and \$500,000 per accident for property damage.

(c) Standard Workman's Compensation and Employer's Liability Insurance (or, where maritime employment is involved, Longshoremen's and Harbor Worker's Compensation Insurance) in the minimum amount of \$100,000.

(d) Aircraft public and passenger liability: \$200,000 per person and \$500,000 per occurrence for bodily injury, other than passenger liability; \$200,000 per occurrence for property damage. Passenger bodily injury liability limits of \$200,000 per passenger, multiplied by the number of seats or number of passengers, whichever is greater.

## Section I - Contract Clauses

## CLAUSES INCORPORATED BY REFERENCE

|           |                                                                                                                                                                            |          |
|-----------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| 52.202-1  | Definitions                                                                                                                                                                | JUN 2020 |
| 52.203-10 | Price Or Fee Adjustment For Illegal Or Improper Activity                                                                                                                   | MAY 2014 |
| 52.203-12 | Limitation On Payments To Influence Certain Federal Transactions                                                                                                           | JUN 2020 |
| 52.203-13 | Contractor Code of Business Ethics and Conduct                                                                                                                             | NOV 2021 |
| 52.203-16 | Preventing Personal Conflicts of Interest                                                                                                                                  | JUN 2020 |
| 52.203-19 | Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements                                                                                         | JAN 2017 |
| 52.204-1  | Approval of Contract                                                                                                                                                       | DEC 1989 |
| 52.204-2  | Security Requirements                                                                                                                                                      | MAR 2021 |
| 52.204-9  | Personal Identity Verification of Contractor Personnel                                                                                                                     | JAN 2011 |
| 52.204-13 | System for Award Management Maintenance                                                                                                                                    | OCT 2018 |
| 52.204-18 | Commercial and Government Entity Code Maintenance                                                                                                                          | AUG 2020 |
| 52.204-19 | Incorporation by Reference of Representations and Certifications.                                                                                                          | DEC 2014 |
| 52.204-21 | Basic Safeguarding of Covered Contractor Information Systems                                                                                                               | NOV 2021 |
| 52.204-23 | Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities                                                    | DEC 2023 |
| 52.204-25 | Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment                                                                     | NOV 2021 |
| 52.204-27 | Prohibition on a ByteDance Covered Application                                                                                                                             | JUN 2023 |
| 52.209-6  | Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded                             | JAN 2025 |
| 52.209-9  | Updates of Publicly Available Information Regarding Responsibility Matters                                                                                                 | OCT 2018 |
| 52.209-10 | Prohibition on Contracting With Inverted Domestic Corporations                                                                                                             | NOV 2015 |
| 52.210-1  | Market Research                                                                                                                                                            | NOV 2021 |
| 52.211-8  | Time of Delivery                                                                                                                                                           | JUN 1997 |
| 52.211-15 | Defense Priority And Allocation Requirements                                                                                                                               | APR 2008 |
| 52.212-5  | Contract Terms and Conditions Required to Implement Statutes or Executive Orders--Commercial Products and Commercial Services (Deviation 2025-O0003/ Deviation 2025-O0004) | OCT 2025 |
| 52.215-8  | Order of Precedence--Uniform Contract Format                                                                                                                               | OCT 1997 |
| 52.215-10 | Price Reduction for Defective Certified Cost or Pricing Data                                                                                                               | AUG 2011 |
| 52.215-14 | Integrity of Unit Prices                                                                                                                                                   | NOV 2021 |
| 52.215-15 | Pension Adjustments and Asset Reversions                                                                                                                                   | OCT 2010 |
| 52.215-17 | Waiver of Facilities Capital Cost of Money                                                                                                                                 | OCT 1997 |
| 52.215-18 | Reversion or Adjustment of Plans for Postretirement Benefits (PRB) Other than Pensions                                                                                     | JUL 2005 |
| 52.215-19 | Notification of Ownership Changes                                                                                                                                          | OCT 1997 |
| 52.215-21 | Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data -- Modifications                                                        | NOV 2021 |
| 52.216-7  | Allowable Cost And Payment                                                                                                                                                 | AUG 2018 |
| 52.216-19 | Order Limitations                                                                                                                                                          | OCT 1995 |
| 52.216-22 | Indefinite Quantity                                                                                                                                                        | OCT 1995 |

|                 |                                                                                       |          |
|-----------------|---------------------------------------------------------------------------------------|----------|
| 52.216-24       | Limitation Of Government Liability                                                    | APR 1984 |
| 52.219-9        | Small Business Subcontracting Plan                                                    | JAN 2025 |
| 52.219-14       | Limitations On Subcontracting                                                         | OCT 2022 |
| 52.219-16       | Liquidated Damages-Subcontracting Plan                                                | SEP 2021 |
| 52.219-28       | Postaward Small Business Program Rerepresentation                                     | JAN 2025 |
| 52.222-37       | Employment Reports on Veterans                                                        | JUN 2020 |
| 52.222-40       | Notification of Employee Rights Under the National Labor Relations Act                | DEC 2010 |
| 52.222-50       | Combating Trafficking in Persons                                                      | OCT 2025 |
| 52.222-54       | Employment Eligibility Verification                                                   | JAN 2025 |
| 52.223-5        | Pollution Prevention and Right-to-Know Information                                    | MAY 2024 |
| 52.223-10 (Dev) | Waste Reduction Program (DEVIATION 2025-O0004)                                        | MAR 2025 |
| 52.223-23 (Dev) | Sustainable Products and Services (DEVIATION 2025-O0004)                              | MAR 2025 |
| 52.224-1        | Privacy Act Notification                                                              | APR 1984 |
| 52.224-2        | Privacy Act                                                                           | APR 1984 |
| 52.224-3        | Privacy Training                                                                      | JAN 2017 |
| 52.224-3 Alt I  | Privacy Training (JAN 2017) -Alternate I                                              | JAN 2017 |
| 52.225-13       | Restrictions on Certain Foreign Purchases                                             | FEB 2021 |
| 52.226-8        | Encouraging Contractor Policies To Ban Text Messaging While Driving                   | MAY 2024 |
| 52.227-1        | Authorization and Consent                                                             | JUN 2020 |
| 52.227-2        | Notice And Assistance Regarding Patent And Copyright Infringement                     | JUN 2020 |
| 52.228-5        | Insurance - Work On A Government Installation                                         | JAN 1997 |
| 52.228-7        | Insurance--Liability To Third Persons                                                 | MAR 1996 |
| 52.228-9        | Cargo Insurance                                                                       | MAY 1999 |
| 52.229-3        | Federal, State And Local Taxes                                                        | FEB 2013 |
| 52.229-6        | Taxes--Foreign Fixed-Price Contracts                                                  | FEB 2013 |
| 52.230-2        | Cost Accounting Standards                                                             | JUN 2020 |
| 52.230-6        | Administration of Cost Accounting Standards                                           | JUN 2010 |
| 52.232-1        | Payments                                                                              | APR 1984 |
| 52.232-4        | Payments Under Transportation Contracts and Transportation-Related Services Contracts | APR 1984 |
| 52.232-8        | Discounts For Prompt Payment                                                          | FEB 2002 |
| 52.232-9        | Limitation On Withholding Of Payments                                                 | APR 1984 |
| 52.232-11       | Extras                                                                                | APR 1984 |
| 52.232-17       | Interest                                                                              | MAY 2014 |
| 52.232-18       | Availability Of Funds                                                                 | APR 1984 |
| 52.232-19       | Availability Of Funds For The Next Fiscal Year                                        | APR 1984 |
| 52.232-23       | Assignment Of Claims                                                                  | MAY 2014 |
| 52.232-25       | Prompt Payment                                                                        | JAN 2017 |
| 52.232-33       | Payment by Electronic Funds Transfer--System for Award Management                     | OCT 2018 |
| 52.232-39       | Unenforceability of Unauthorized Obligations                                          | JUN 2013 |
| 52.232-40       | Providing Accelerated Payments to Small Business Subcontractors                       | MAR 2023 |
| 52.233-1        | Disputes                                                                              | MAY 2014 |
| 52.233-3        | Protest After Award                                                                   | AUG 1996 |
| 52.233-4        | Applicable Law for Breach of Contract Claim                                           | OCT 2004 |
| 52.237-2        | Protection Of Government Buildings, Equipment, And Vegetation                         | APR 1984 |
| 52.237-3        | Continuity Of Services                                                                | JAN 1991 |
| 52.239-1        | Privacy or Security Safeguards                                                        | AUG 1996 |

|                    |                                                                                                                             |          |
|--------------------|-----------------------------------------------------------------------------------------------------------------------------|----------|
| 52.240-1           | Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act--Covered Foreign Entities | NOV 2024 |
| 52.242-1           | Notice of Intent to Disallow Costs                                                                                          | APR 1984 |
| 52.242-3           | Penalties for Unallowable Costs                                                                                             | DEC 2022 |
| 52.242-4           | Certification of Final Indirect Costs                                                                                       | JAN 1997 |
| 52.242-5           | Payments to Small Business Subcontractors                                                                                   | JAN 2017 |
| 52.242-13          | Bankruptcy                                                                                                                  | JUL 1995 |
| 52.243-1           | Changes--Fixed Price                                                                                                        | AUG 1987 |
| 52.244-2           | Subcontracts                                                                                                                | JUN 2020 |
| 52.244-5           | Competition In Subcontracting                                                                                               | AUG 2024 |
| 52.244-6 (Dev)     | Subcontracts for Commercial Products and Commercial Services (DEVIATION 2025-O0003)                                         | OCT 2025 |
| 52.245-1           | Government Property                                                                                                         | SEP 2021 |
| 52.245-1 Alt I     | Government Property (SEP 2021) Alternate I                                                                                  | APR 2012 |
| 52.245-9           | Use And Charges                                                                                                             | APR 2012 |
| 52.246-20          | Warranty Of Services                                                                                                        | MAY 2001 |
| 52.246-25          | Limitation Of Liability--Services                                                                                           | FEB 1997 |
| 52.247-17          | Charges                                                                                                                     | APR 1984 |
| 52.247-21          | Contractor Liability for Personal Injury and/or Property Damage                                                             | APR 1984 |
| 52.247-27          | Contract Not Affected by Oral Agreement                                                                                     | APR 1984 |
| 52.249-1           | Termination For Convenience Of The Government (Fixed Price) (Short Form)                                                    | APR 1984 |
| 52.249-2           | Termination For Convenience Of The Government (Fixed-Price)                                                                 | APR 2012 |
| 52.249-8           | Default (Fixed-Price Supply & Service)                                                                                      | APR 1984 |
| 52.252-2           | Clauses Incorporated By Reference                                                                                           | FEB 1998 |
| 52.253-1           | Computer Generated Forms                                                                                                    | JAN 1991 |
| 252.203-7000       | Requirements Relating to Compensation of Former DoD Officials                                                               | SEP 2011 |
| 252.203-7001       | Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies                                        | JAN 2023 |
| 252.203-7002       | Requirement to Inform Employees of Whistleblower Rights                                                                     | DEC 2022 |
| 252.203-7003       | Agency Office of the Inspector General                                                                                      | AUG 2019 |
| 252.203-7004       | Display of Hotline Posters                                                                                                  | JAN 2023 |
| 252.204-7000       | Disclosure Of Information                                                                                                   | OCT 2016 |
| 252.204-7003       | Control Of Government Personnel Work Product                                                                                | APR 1992 |
| 252.204-7004       | Antiterrorism Awareness Training for Contractors                                                                            | JAN 2023 |
| 252.204-7009       | Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information                          | JAN 2023 |
| 252.204-7012 (Dev) | Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013 REVISION 1)                     | MAY 2024 |
| 252.204-7015       | Notice of Authorized Disclosure of Information for Litigation Support                                                       | JAN 2023 |
| 252.204-7018       | Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services                                  | JAN 2023 |
| 252.204-7020       | NIST SP 800-171 DoD Assessment Requirements                                                                                 | NOV 2023 |
| 252.204-7021       | Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements                                | NOV 2025 |
| 252.205-7000       | Provision Of Information To Cooperative Agreement Holders                                                                   | OCT 2024 |
| 252.209-7004       | Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism  | MAY 2019 |

|                    |                                                                                                             |          |
|--------------------|-------------------------------------------------------------------------------------------------------------|----------|
| 252.215-7002       | Cost Estimating System Requirements                                                                         | JAN 2025 |
| 252.219-7003       | Small Business Subcontracting Plan (DOD Contracts)                                                          | DEC 2019 |
| 252.222-7006       | Restrictions on the Use of Mandatory Arbitration Agreements                                                 | JAN 2023 |
| 252.223-7001       | Hazard Warning Labels                                                                                       | DEC 1991 |
| 252.223-7006       | Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials                             | SEP 2014 |
| 252.225-7001       | Buy American and Balance of Payments Program                                                                | FEB 2024 |
| 252.225-7013       | Duty-Free Entry                                                                                             | AUG 2025 |
| 252.225-7048       | Export-Controlled Items                                                                                     | JUN 2013 |
| 252.225-7056       | Prohibition Regarding Business Operations with the Maduro Regime                                            | JAN 2023 |
| 252.226-7003       | Drug-Free Work Force                                                                                        | AUG 2024 |
| 252.227-7013       | Rights in Technical Data--Other Than Commercial Products and Commercial Services                            | AUG 2025 |
| 252.227-7014       | Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation | AUG 2025 |
| 252.227-7016       | Rights in Bid or Proposal Information                                                                       | JAN 2025 |
| 252.227-7025       | Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends    | JAN 2025 |
| 252.227-7026       | Deferred Delivery Of Technical Data Or Computer Software                                                    | APR 1988 |
| 252.227-7027       | Deferred Ordering Of Technical Data Or Computer Software                                                    | APR 1988 |
| 252.227-7030       | Technical Data--Withholding Of Payment                                                                      | MAR 2000 |
| 252.227-7037       | Validation of Restrictive Markings on Technical Data                                                        | JAN 2025 |
| 252.228-7007       | Public Aircraft and State Aircraft Operations--Liability                                                    | MAR 2023 |
| 252.232-7004 (Dev) | DoD Progress Payment Rates (DEVIATION 2020-O0010)                                                           | MAR 2020 |
| 252.232-7007       | Limitation Of Government's Obligation                                                                       | APR 2014 |
| 252.232-7010       | Levies on Contract Payments                                                                                 | DEC 2006 |
| 252.237-7010       | Prohibition on Interrogation of Detainees by Contractor Personnel                                           | JAN 2023 |
| 252.239-7001       | Information Assurance Contractor Training and Certification                                                 | JAN 2008 |
| 252.242-7004       | Material Management And Accounting System                                                                   | JAN 2025 |
| 252.242-7006       | Accounting System Administration                                                                            | JAN 2025 |
| 252.243-7001       | Pricing Of Contract Modifications                                                                           | DEC 1991 |
| 252.243-7002       | Requests for Equitable Adjustment                                                                           | DEC 2022 |
| 252.244-7000       | Subcontracts for Commercial Products or Commercial Services                                                 | NOV 2023 |
| 252.245-7000       | Government-Furnished Mapping, Charting, and Geodesy Property                                                | APR 2012 |
| 252.245-7003       | Contractor Property Management System Administration                                                        | JAN 2025 |
| 252.245-7005       | Management and Reporting of Government Property                                                             | JAN 2024 |
| 252.246-7003       | Notification of Potential Safety Issues                                                                     | JAN 2023 |
| 252.247-7023       | Transportation of Supplies by Sea                                                                           | OCT 2024 |

#### CLAUSES INCORPORATED BY FULL TEXT

##### 52.216-18 ORDERING. (AUG 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from contract award through contract expiration.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when--

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either--

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)



## Section J - List of Documents, Exhibits and Other Attachments

### ATTACHMENTS

#### **SECTION J**

|                |                                         |                  |
|----------------|-----------------------------------------|------------------|
| Attachment (1) | Performance Work Statement (PWS)        | 18 February 2026 |
| Attachment (2) | Airworthiness Checklist                 | 19 February 2026 |
| Attachment (3) | Quality Assurance Surveillance Plan     | 19 February 2026 |
| Attachment (4) | Small Business Plan Commitment Document | TBD              |
| Attachment (5) | Small Business Subcontracting Plan      | TBD              |

### EXHIBIT A

#### **CONTRACT DATA REQUIREMENTS (CDRLs)**

|      |                                                                        |
|------|------------------------------------------------------------------------|
| A001 | Capability Standup Integrated Master Schedule (IMS)                    |
| A002 | Public Aircraft Operations (PAO) Airworthiness Checklist Documentation |
| A003 | Government Flight Representative (GFR) Supporting Documentation        |
| A004 | Fuel Consumption Tracking                                              |
| A005 | AIR Card Statement Of Understanding (SOU) and Training                 |
| A006 | Contractor's Progress, Status and Management Report                    |
| A007 | Contractor Roster                                                      |
| A008 | Post-Award Conference (PAC) Briefing Material                          |
| A009 | Program Management Review (PMR) Briefing Material                      |
| A00A | Post-Award Conference / Program Management Review Meeting Minutes      |
| A00B | Anti-Terrorism Training For Contractors                                |
| A00C | Combating Trafficking In-Persons (CTIP) Training Program Plan          |
| A00D | Combating Trafficking In-Persons (CTIP) Training                       |
| A00E | Operations Security (OPSEC) Plan                                       |

Section K - Representations, Certifications and Other Statements of Offerors

CLAUSES INCORPORATED BY REFERENCE

|                |                                                                                                                |          |
|----------------|----------------------------------------------------------------------------------------------------------------|----------|
| 52.204-8 (Dev) | Annual Representations and Certifications (DEVIATION 2025-O0003/ DEVIATION 2025-O0004)                         | OCT 2025 |
| 52.204-24      | Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment               | NOV 2021 |
| 52.204-29      | Federal Acquisition Supply Chain Security Act Orders-- Representation and Disclosures.                         | DEC 2023 |
| 52.209-11      | Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law | FEB 2016 |
| 252.225-7055   | Representation Regarding Business Operations with the Maduro Regime                                            | MAY 2022 |

## Section L - Instructions, Conditions and Notices to Bidders

SECTION L**PART A GENERAL INSTRUCTIONS****1. GENERAL**

Offerors are required to submit sufficient information concerning all evaluation factors to enable Government personnel to assess the capabilities of the Offeror to perform all requirements. The proposal must be sufficient in detail and scope to enable evaluation and provide the evaluators a clear understanding of the Offeror's approach, expertise, experience, and capability as required by the solicitation. All proposals must clearly demonstrate that the Offeror has a thorough understanding of all requirements and associated risks; is able, willing, and capable of devoting the resources necessary to meet all requirements; and has valid and practical solutions for all requirements and potential risk areas. The Offeror shall not alter or rearrange the solicitation. The burden of proof for all substantiation within the proposal rests with the Offeror. The Government advises Offerors that the Government may incorporate any part of the Offeror's proposal deemed beneficial to the Government, into the final contract with or without discussions. Alternate proposals are not acceptable. Price information, (e.g., dollar values and/or hourly rates) shall appear only in Volume 1 (Contract Administration), Volume 4 (Price), and Volume 5 (Small Business). Offerors shall ensure that price files remain separate from the rest of the proposal files.

In presenting material in the proposal, the Offeror should emphasize clarity, brevity, and logical organization in its proposal and understand that quality of information is more important than quantity. It is the responsibility of the Offeror to present enough information to allow the Government to evaluate its proposal without discussions.

However, the Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary. Unsubstantiated statements that the prospective Offeror understands, can or will comply with the specifications, or paraphrasing the requirements or parts thereof are inadequate and may render a rating of unacceptable.

The Offeror shall include any data necessary to illustrate the adequacy of the various assumptions, approaches, and solutions to problems. There is no need to repeat information in more than one volume. The Offeror shall include detailed information in the most logical place and use a summary or reference to other areas if an overlap exists. Do not provide elaborate brochures or other presentation material beyond that sufficient to present a complete and effective proposal.

This solicitation and the resulting contract require the contractor to achieve and maintain Cybersecurity Maturity Model Certification (CMMC) Level 2 certification for the full duration of the contract performance. The CMMC requirements are specified in DFARS Clause 252.204-7021, Cybersecurity Maturity Model Certification Requirement. Offerors are required to comply with all applicable DFARS clauses related to the protection of Controlled Unclassified Information (CUI), including 252.204-7012, 252.204-7019, and 252.204-7020. The

Government's verification of the offeror's CMMC status is a part of the responsibility determination, which requires Offerors to have a current CMMC Level 2 self-assessment status posted in the DoD's Supplier Performance Risk System (SPRS) prior to contract award. An offeror that does not have an active and current CMMC Level 2 status in SPRS will be considered ineligible for award.

Throughout these instructions, the "Offeror" is the Prime Contractor with its Commercial and Government Entity (CAGE) code identified in Block 15A on Standard Form (SF)-33, Solicitation, Offer, and Award. For purposes of this evaluation, the Prime Contractor is the Principal Entity. The Government will only use contract references from the Principal Entity in the Past Performance evaluations.

## **2. PROPOSAL FORMAT AND SUBMISSION**

Offerors shall format all proposals using a Times New Roman 12-point normal font (no reduction permitted), single-spaced. The Offeror shall number all pages with volume, paragraph, and page numbers. If the Offeror uses graphs to convey information, the graphs must show enough detail to understand the information described. The Offeror shall present graphs and tables in no smaller than a 10 pt Times New Roman font.

### **2.1 Electronic Submission of Proposal**

All volumes of the proposal shall be submitted electronically through the Solicitation Module of the Procurement Integrated Enterprise Environment (PIEE) at <https://piee.eb.mil>. All proposal information shall be marked with "Source Selection Information – See FAR 2.101 and 3.104. No other submissions, such as mail, hand-carried, or other electronic system (e.g., DOD SAFE) are authorized by the solicitation unless specifically authorized by the Contracting Officer pursuant to the paragraphs regarding PIEE System outages below. For instructions on how to post an offer, please refer to the Posting Offer demo: [https://pieetraining.eb.mil/wbt/sol/Posting\\_Offer.pdf](https://pieetraining.eb.mil/wbt/sol/Posting_Offer.pdf).

It is the Offeror's responsibility to follow the registration instructions found on the PIEE website. The Government advises Offerors to register the proper company points of contact in PIEE based on their CAGE codes and that the proper roles are assigned well in advance of the solicitation closing date. It is also the Offeror's responsibility to confirm receipt of proposals and all electronic communications. Offerors should take screen shots of the submission to validate acceptance of the submission in the PIEE system for this solicitation. The Government is not obligated to search for incorrectly submitted proposals in PIEE.

The submission date for all Volumes shall be no later than the date and time specified in Block 9 of the SF 33 of the Request for Proposal (RFP). Offerors are responsible for submitting proposals, and any modifications or revisions, to reach the Government office designated in this solicitation by the date and time specified. While Offerors are encouraged to submit documents early, any submission, modification, or revision received at the Government office after the exact date and time specified is "late" and will not be evaluated or considered for award. In the event there is acceptable evidence to establish that the submission, and any modifications or revisions were received at the Government installation designated for receipt of offers and was under the

Government's control prior to the date and time set for receipt of offers, the Procuring Contracting Officer (PCO) will accept the submission.

### **2.1.1 Electronic Proposal Media**

The Offeror shall submit all volumes of its proposal electronically and ensure compatibility with the operating system and applications defined in Section 2.1.2 below. The Offeror should keep the portions of the proposal that contain pricing information separate from the portions of the proposal that do not contain pricing information. The Offeror is responsible for ensuring electronic proposals are virus free in accordance with Section 2.1.4.

### **2.1.2 Operating System and Applications**

The Government uses Microsoft Windows 11 Operating System to access proposals. Offerors shall submit proposal information using Microsoft 365 applications. However, Offerors shall submit letters and other signed documents as a fully searchable Portable Document Format (.pdf) file. Use of other application software for submission of proposals is prohibited.

### **2.1.3 Hyperlinks**

The Offeror shall not use hyperlinks in proposal volumes.

### **2.1.4 Virus Free Electronic Submission**

The Offeror is responsible for ensuring that its electronic proposal is virus-free. The Offeror shall certify, in its proposal cover letter, that all electronic proposal information delivered throughout the evaluation (e.g., original proposal submission, responses to evaluation notices, Final Proposal Revisions) are virus-free. The Offeror shall specify the software, version, and virus definition used to check the data.

### **2.1.5 Multimedia**

To reduce file sizes, the Offeror shall not embed sound or video (e.g., MPEG) files within the proposal submission. The Offeror is encouraged to simplify the color palette used in creating figures; and minimize size of graphics files; and avoid scanned images.

### **2.1.6 File Naming Conventions**

Valid extensions for files using their associated applications follow:

| <b>Type of Application/Files</b> | <b>Valid Extensions</b> |
|----------------------------------|-------------------------|
| Portable Document Files          | .pdf                    |
| Microsoft Word documents         | .docx                   |
| Microsoft Excel documents        | .xlsx                   |
| Microsoft Power Point            | .pptx                   |
| Microsoft Project                | .mpp                    |

The Offeror shall follow the basic structure of the file naming convention in Table G-1 (Offeror Electronic File Naming Convention) for electronic file submissions (e.g., proposal volumes, attachments, appendices), where “#” represents the sequential numbering of files. Offerors shall keep file names short (i.e., under 40 characters) so that the files are accessible on Government share drives. Files with longer names often become corrupt or inaccessible.

The Offeror should provide one folder for each volume or annex, containing all electronic files requested within the volume or annex. Please submit each volume, or annex as one file if possible. Offerors should not provide each section/paragraph as separate files.

**Table G-1 Proposal Structure**

| Volume Number | Title                                                                                        | File naming convention                                                                                               | Suggested Pages |
|---------------|----------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------|-----------------|
| 1             | <b>Contract Administration</b>                                                               | Vol 1 CA#.docx                                                                                                       | 20              |
|               | CA-1 Offeror Business Systems Status<br>CA-2 Relevant Contract Summary                       | Vol 1 CA Tables.xlsx                                                                                                 | As Needed       |
| 2             | <b>Technical</b>                                                                             | Vol 2 Tech#.docx                                                                                                     | 25              |
|               | T-1 Technical Cross Reference Matrix                                                         | Vol 2 CRM.xlsx                                                                                                       | 2               |
| 3             | <b>Past Performance</b>                                                                      | Vol 3 PP#.PDF and Vol 3 PP#.docx                                                                                     | 25              |
|               | Table PP-1 Past Performance Contract Data                                                    | Vol 3 Con Data.PDF and Vol 3 PP-1 Con Data.xlsx                                                                      | As Needed       |
|               | Past Performance Questionnaire                                                               | Vol 3 PPQ#.pdf                                                                                                       | As Needed       |
| 4             | <b>Price</b>                                                                                 | Vol 4 Price#.docx                                                                                                    | As Needed       |
|               | CP-1 Pricing Sheet<br>CP-2 Government Fuel Cost<br>CP-3 Total Evaluated Price                | Vol 4 CP Tables.xlsx                                                                                                 | As Needed       |
| 5             | <b>Small Business</b>                                                                        | Vol 5 SBPCD.docx<br>Vol 5 SBSP.docx                                                                                  | As Needed       |
|               | <b>Annexes</b>                                                                               |                                                                                                                      |                 |
| Annex A       | Final Versions of Previous SOO/SOW/PBWSs/Other Supporting Documentation for Past Performance | AnnA PPR#.pdf or AnnA PPR#.docx<br>Please note: The Offeror shall provide a .pdf or .docx versions of the documents. | As Needed       |
| Annex B       | Technical Volume Supplementary Information                                                   | AnnB TechDocs.pdf or AnnB TechDocs.docx                                                                              | As Needed       |

### 3. PROPOSAL CONTENT AND VOLUMES

The Offeror shall present its proposal information in a manner that facilitates a one-for-one comparison between the information presented and these proposal instructions. Offerors shall structure proposal information such that the proposal paragraph numbers/letters correspond to

the proposal instructions paragraph numbers/letters, although the Offeror may add lower tier sub paragraphs.

Information submitted as an Annex to a particular proposal volume could include manuals, specifications, plans, procedures, and company policies, as well as other information requested in Section B Specific Instructions and do not count towards the suggested page count.

**Table G-2 Section L List of Attachments**

| Section L Attachment Number | Electronic File Title                                                                                      | Attachment Name   |
|-----------------------------|------------------------------------------------------------------------------------------------------------|-------------------|
| L-1                         | Contract Administration Tables, CA-1 (Offeror Business System Status) and CA-2 (Relevant Contract Summary) | CA-1 & CA-2       |
| L-2                         | Technical Cross Reference Matrix                                                                           | T-1               |
| L-3                         | Airworthiness Checklist                                                                                    | AWCL              |
| L-4                         | Past Performance Contract Data                                                                             | PP-1              |
| L-5                         | Past Performance Questionnaire                                                                             | PPQ               |
| L-6                         | Price Tables, CP-1 (Pricing Sheet), CP-2 Government Fuel Cost, and CP-3 Total Evaluated Price              | CP-1, CP-2 & CP-3 |
| L-7                         | Small Business Participation Commitment Document (SBPCD)                                                   | SBPCD             |

#### **4. PROPOSAL SUBMISSION AND PACKAGING**

All Proposals shall be **UNCLASSIFIED**.

The submission date for all volumes shall be no later than the date and time specified in Block 9 of Standard Form 33 of the solicitation. The Government requests that Offerors submit Tables CA-1, and CA-2 from Volume 1, Contract Administration, Table PP-1 for all contract references from Volume 3-Past Performance, and Annex A, 14 calendar days prior to the submission date/time specified on Standard Form 33 (Block 9). Offerors shall indicate any changes made to the information delivered early in the final submission provided on the date and time specified in Block 9 of Standard Form 33 of the solicitation. If the Offeror does not make any changes form the advance submittal, please state so at the beginning of Volume 1 Contract Administration and Volume 3 Past Performance.

Method of delivery, such as by hand, United States Postal Service or commercial carrier, are not authorized. Offerors will follow the directions for electronic submittal identified in paragraph 2.1.

#### **5. CHANGES TO SOLICITATION**

The Government will post all amendments to this solicitation at <https://www.sam.gov/>

Search the database for the solicitation number **N0042126RXXXX**.

## **PART B SPECIFIC INSTRUCTIONS**

### **1. VOLUME 1 – CONTRACT ADMINISTRATION**

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Attachment L-1      Contract Administration Tables, CA-1 (Offeror Business System Status),  
and CA-  
2 (Relevant Contract Summary)

The purpose of the Contract Administration Volume is to provide the Government the ability to assess the Offeror's compliance with the information specified within the solicitation. This information is to facilitate the PCO's responsibility determination and any need to discuss information related to an Offeror's responsibility does not constitute discussions. The Offeror shall complete all Tables provided in Attachment L-1 according to the instructions within the attachment and submit them within this section and as a separate electronic file.

The Offeror shall divide the Contract Administration Volume into the sections outlined below:

a. Prerequisite:

#### **Aircraft Ownership and/or Leasing Documentation**

The Offeror shall provide proof of ownership for at least one (1) proposed aircraft by Type/Model/Series (T/M/S) and serial number for this solicitation. Alternatively, the Offeror may submit a signed lease agreement along with lease expiration date for at least one (1) aircraft by T/M/S and serial number to comply with this prerequisite. If the Offeror is leasing the aircraft, the Offeror shall further demonstrate that the lease allows the Offeror to modify the leased aircraft to comply with the PWS requirements. The Offeror shall provide all supporting documentation to demonstrate ownership in Annex B.

- b. The Offeror shall complete Table CA-1 (Offeror Business Systems Status) showing the status and or determinations regarding its business systems. The Offeror shall indicate the most recent date that the Offeror's cognizant Defense Contract Management Agency (DCMA)/ Defense Contract Audit Agency (DCAA) determined the adequacy of the Offeror's systems (including but not limited to Accounting, Property, and Purchasing). If any item is not applicable to the Offeror or for contract performance, state and justify.

In the event the status of an Offeror's system is not adequate, list the date of the last adequacy determination and the status of any systems reviews or ongoing audits. If any system was unapproved or deemed inadequate, outline the potential impact on contract execution, mitigation plan, and correction plan.

#### **Table CA-1 Offeror Business Systems Status**



| Business System            | (D)FAR Reference       | Status | Comments |
|----------------------------|------------------------|--------|----------|
| Accounting System          | 16.301-3               |        |          |
| Estimating System          | 215.407-5              |        |          |
| CAS Disclosure Statements  | 30.202-6(b)            |        |          |
| Purchasing System          | 44.3                   |        |          |
| Property Management System | 45.105                 |        |          |
| CMMC (Level 2–Self)        | 252.204-7019/7020/7021 |        |          |

- c. The Offeror shall complete Table CA-2 (Relevant Contract Summary) to delineate all contract references that relate to the Prime Contractor for Past Performance.

For this solicitation, contract references shall relate to the same CAGE code/ Unique Entity Identifier (UEI) as the proposed entity. The Offeror shall explain any contract reference that relates to different CAGE code/UEI than the proposed entity. Explanation of why a different CAGE code/UEI is appropriate for inclusion in the evaluation is required. Please describe if the discrepancy in the CAGE code/UEI is a result of a corporate acquisition, reorganization, merger, or other administrative reason and explain how the changes impact the contract references provided.

**Table CA-2 Relevant Contract Summary**

| <b>Offeror:</b> |                            |                 |                |                                                   |
|-----------------|----------------------------|-----------------|----------------|---------------------------------------------------|
| Entity Name     | Contract Reference Number* | Contract Number | Contract Title | List any Changes/Additions from Early Information |
| Prime           | P1                         |                 |                |                                                   |
|                 | P2                         |                 |                |                                                   |
|                 | P3                         |                 |                |                                                   |

\*Add rows as needed to list all similar contracts

- d. Offeror Representatives and Information

Provide the name, title, phone number and email address of the Offeror's principal point of contact for the solicitation. In addition, the Offeror shall identify those individuals authorized to negotiate with the Government and contractually bind the Offeror. The Offeror shall provide its company/division's street address, county and facility code; CAGE code; UEI; size of business (large or small); and labor surplus area designation.

- e. Government Agency Information

Provide the mailing address, telephone, fax numbers, email address and facility codes for the Offeror's cognizant Contract Administration Office, DCAA, and Government Paying Office. In addition, please provide the name, telephone number, fax number and email address for the Administrative Contracting Officer (ACO) at the DCMA.

f. Model Contract Documents:

1. Original signed SF33 (Solicitation, Offer, and Award) cover page of the solicitation and a signed SF-30 cover page of each amendment (as applicable) with all applicable Blocks completed and acknowledgement of receipt of each amendment (as applicable) to this solicitation. The SF-33 Block 12 “fill-in” (proposal validity date) shall be completed in accordance with (IAW) Section A (Solicitation/Contract Form);
2. Signed Representations, Certifications, and Acknowledgements or System for Award Management (SAM) reference;
3. Section B with proposed pricing;
4. A completed copy of all Federal Acquisition Regulation (FAR), Defense Federal Acquisition Regulation Supplement (DFARS), Naval Air Systems Command (NAVAIR), and special clauses and provisions requiring contractor fill-ins.

g. Terms and Conditions:

Submission of a signed offer to the Government constitutes agreement and acceptance of the terms and conditions of the solicitation in a FFP contracting environment.

- h. An exception to the terms and conditions or proposed deviation is a deficiency. A deficiency renders the Offeror’s proposal unawardable. An exception occurs if/when an Offeror states it will not comply with a solicitation requirement, usually involving contract terms and conditions. A deviation is where an Offeror states it will not comply with a solicitation requirement but proposes an alternative to meet the intent of the requirement, usually involving a PWS requirement.

## 2. VOLUME 2 - TECHNICAL

**Note: This volume shall not contain any reference to price aspects of the offer.**

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

|                |                                  |
|----------------|----------------------------------|
| Attachment L-2 | T-1 Cross Reference Matrix (CRM) |
| Attachment L-3 | Airworthiness Checklist          |

A CRM, Table T-1, is included to help the Offeror develop its proposal and to ensure traceability of Section L paragraphs to the requirements. The Offeror’s CRM may be identical to the one provided or revised to add information. For example, the Offeror’s CRM may cross-reference its proposal volumes, paragraph numbers, and pages to specific solicitation requirements identified within the table, as well as other parts of the proposal that contain relevant information. Include the Table T-1 Cross Reference Matrix at the beginning of Volume 2 Technical.

### Table T-1 Example Cross Reference Matrix

| <b>Section L – Proposal Instructions Volume or Paragraph Numbers</b> | <b>Section L - Proposal Instructions Volume or Paragraph Title</b> | <b>RFP Sections (e.g. Sections F, H, and M)</b> | <b>PWS</b>                                  | <b>CLIN</b>             | <b>Offeror Proposal Reference</b> |
|----------------------------------------------------------------------|--------------------------------------------------------------------|-------------------------------------------------|---------------------------------------------|-------------------------|-----------------------------------|
| <b>Volume 2</b>                                                      | <b>Technical</b>                                                   |                                                 |                                             |                         |                                   |
| <b>2.1</b>                                                           | <b>Aircraft Performance and Configuration Requirements</b>         | Section M, Part II, A. Technical                | <b>3.1, 5.5, Appendix E</b>                 | <b>0001, 0002, 0004</b> |                                   |
| <b>2.2</b>                                                           | <b>Aircraft Modification Plan</b>                                  | Section M, Part II, A. Technical                | <b>4.1, 4.5, Appendix E</b>                 | <b>0001, 0002</b>       |                                   |
| <b>2.3</b>                                                           | <b>Airworthiness Data</b>                                          | Section M, Part II, A. Technical                | <b>4.5, 4.6, 4.11, 5.6, 5.9, Appendix E</b> | <b>0001, 0002, 0004</b> |                                   |
| <b>2.4</b>                                                           | <b>Integrated Master Schedule (IMS)</b>                            | Section M, Part II, A. Technical                | <b>4.1, Appendix D</b>                      | <b>0001, 0002</b>       |                                   |

Throughout the Technical Volume, the Offeror shall identify any proposed capability, approach or feature that exceeds a requirement or provides merit associated with a performance or operational benefit to the Government. The Offeror shall also identify proposed capability, approach or feature that reduces risk inherent in the program. Specifically, explain the benefits to the Government in technical terms and the degree of impact it will have to performance, operations and/or risk. All technical proposals shall address each of the following elements:

## **2.1 Aircraft Performance Requirements**

This requirement can be satisfied by submitting an existing, active (as of the date specified in Block 9 of the SF 33 of the RFP) NAVAIR Interim Flight Clearance (IFC), USAF Military Flight Release (MFR), or US Army Airworthiness Approval (AWR), if the aircraft can satisfy all configuration requirements of this solicitation within the limits of the submitted IFC, MFR, or AWR.

If the proposed aircraft configuration does not have an active NAVAIR IFC, USAF MFR, or US Army AWR, the Offeror shall submit supporting data as follows:

For each T/M/S aircraft proposed for use on this contract, the Offeror shall substantiate how the aircraft will meet or exceed the aircraft performance requirements (including the listed equipment) described in PWS Appendix E. The Offeror shall submit its supporting data (published performance data, Equipment or Technical Data Sheets, flight manuals, etc.) and accompanying explanations (as applicable) as Annex B to substantiate how its proposed aircraft meet the performance requirements in the specified configuration(s).

Note: If any supporting data is in a language other than English, the salient portions of the data needed to evaluate the aircraft performance characteristics must include with it, an English translation of the appropriate pages, and documentation of the method of translation including the qualifications of the translator.

## **2.2 Aircraft Modification Plan**

For each aircraft proposed that requires modification to meet the configuration and performance requirements of PWS Appendix E the Offeror shall submit a plan detailing the modifications required to bring the aircraft into compliance. Plans shall include all significant modifications required, major milestones, organization(s) performing the modification(s), source of data supporting the modification(s) and airworthiness certification authority.

## **2.3 Airworthiness Data**

### **2.3.1 FAA Airworthiness Certificate**

The Offeror shall provide a plan to secure FAA approval for each aircraft modification required to meet the performance requirements of PWS Appendix E. The plan shall include a compliance checklist and define the source for development of FAA approved data and demonstrate that major alterations to aircraft with Standard and/or Special Restricted Category Airworthiness Certificates will be certified as airworthy and properly documented using FAA Form 337 signed in blocks six (6) (Conformity) and seven (7) (Return to Service) by persons authorized under 14 CFR § 43 and citing FAA approval data.

### **2.3.2 NAVAIR Airworthiness**

The Offeror shall identify any aircraft modification required to meet the performance requirements of PWS Appendix E, where civil operating rules, limitations, or restrictions, will restrict FAA certification for captive carriage only.

### **2.3.3 Aircraft Fatigue Life and Life Limited Parts**

The Offeror shall demonstrate that each aircraft proposed has the remaining part lives to allow the aircraft to be safely operated throughout the five-year ordering period of the planned contract, based on projected combined aircraft usage rates as identified in Section B, CLIN 0004. The Offeror shall indicate any life limited part that will require replacement or overhaul during the ordering period and identify the organization that the Offeror shall use to perform the maintenance.

## **2.4 Integrated Master Schedule**

The Offeror shall submit its Integrated Master Schedule (IMS), which demonstrates its ability to achieve PWS Appendix D, Milestone A and B requirements. The Offeror shall submit a proposed IMS using Microsoft Project .mpp format for completion of all stand-up requirements, including the date that they will be able to provide full performance of services under CLINs

0004 including availability of all aircraft for tasking. The Offeror shall include in the schedule a minimum of 45 days for Government processing of NAVAIR IFC(s) for each aircraft T/M/S. The schedule shall include, at a minimum, the milestones provided in PWS Appendix D and all other significant events required to achieve FOC. Such events include aircraft acquisition events (customs, delivery, contract dates), required certified technical data availability, completion of aircraft modifications including providers, submission of IFC data package, assets transportation, completion of stand-up of the maintenance organizations, completion of aircrew hiring, required training completion. See the Attachment L-3 Airworthiness Checklist for further information.

### 3. VOLUME 3 - PAST PERFORMANCE

**Note: This volume shall not contain any reference to the price aspects of the offer.**

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

|                |                                       |
|----------------|---------------------------------------|
| Attachment L-4 | Past Performance Contract Data (PP-1) |
| Attachment L-5 | Past Performance Questionnaire (PPQ)  |

For this Volume, the Offeror shall identify relevant contract references, or those portions of a relevant contract reference, whose performance is within five (5) years of the solicitation release date and contains efforts that are similar to those efforts (e.g., end product or service, type effort, contract tasks, contract type, contract dollar value, etc.), required by this solicitation for the Prime. Offerors shall also identify relevant contract references within the past five (5) years that had any show-cause notices, cure notices, or termination for default. The Offeror shall complete Table CA-2 (Relevant Contract Summary) provided in Attachment L-1 (Contract Administration Summary Tables), for all contract references proposed as relevant for Past Performance.

In Annex A (Final Versions of Previous Statement of Work (SOW)/Performance Work Statement (PBWS)/Other Supporting Documentation for Past Performance and Corporate Experience), the Offeror shall provide electronic copies of the complete final versions of the SOW/PBWS or other supporting contract documentation from each contract or delivery/task order reference identified in Table CA-2 (Relevant Contract Summary). For contract references that contain delivery/task orders, the Offeror shall provide the work description for each specific delivery/task order. For contract references where the Offeror performed as a subcontractor, the Offeror shall also provide a complete electronic copy of the SOW/PBWS or other documentation of the agreement between the prime and subcontractor that clearly defines the portions of the work effort of the Prime's SOW/PBWS that the Offeror performed as a subcontractor.

Contract Performance Assessment Reporting System (CPARS) and Past Performance Questionnaires (PPQs) are the primary customer feedback data used to evaluate the Offeror's past performance. The [www.CPARS.gov](http://www.CPARS.gov) system is the primary paperless method the Government will use to retrieve the CPARS for this source selection. For all contract references identified that do not have a CPARS, the Offeror shall forward a copy of Attachment L-5 PPQ to the cognizant Procuring Contracting Office (PCO), Administrative Contracting Officer (ACO), and Program Manager (PM), or commercial contractor equivalents for that contract reference. Offerors shall forward all PPQs within two weeks from this solicitation's release date to allow

adequate time for the recipient to respond. Note: The Offeror should not reference this solicitation's number when distributing the PPQs to customers. The Offeror shall include instructions requesting recipients to send completed PPQs via e-mail to Mr. Bradley Dioguardo, Contract Specialist, at [bradley.dioguardo.civ@us.navy.mil](mailto:bradley.dioguardo.civ@us.navy.mil) and Mr. David Silverstone, Contracting Officer, at [david.s.silverstone.civ@us.navy.mil](mailto:david.s.silverstone.civ@us.navy.mil) within two weeks of receipt. The Offeror shall ensure that all points of contact are current, include an email address, and phone number. The Offeror shall not conduct follow-up actions regarding any PPQs, other than to confirm receipt by the recipient. The Government may contact customers identified by the Offeror to obtain follow-up Past Performance Information as needed.

### 3.1 Contract Reference Data

The Offeror shall complete Attachment L-4 Table PP-1 (Past Performance Contract Data) for each contract reference provided, following the instructions provided within the attachment. The Offeror shall submit the completed Attachment L-4 within this section and as a separate electronic file. Please note this form is a summary of the prime's contract reference data. Offerors shall provide all detailed information and comparative analysis of the past performance references to this solicitation's requirements in Volume 3.0, Section 3.2 (Evaluation), of the Offeror's proposal. Offerors shall use the contract references designated in the PP-1 table when completing this Volume. Offerors shall ensure consistency by using the same numbering for all contract references throughout all Offeror's proposal volumes (i.e., the contract references identified as P1, P2, P3, etc.). Offerors may include commercial contract references.

| Table PP-1 Past Performance Contract Data |                                                      |  |
|-------------------------------------------|------------------------------------------------------|--|
| 1                                         | Offeror Name                                         |  |
| 2                                         | Entity Name                                          |  |
| 3                                         | Contract Reference                                   |  |
| 4                                         | Title of Contract                                    |  |
| 5                                         | Contract Number                                      |  |
| 6                                         | Contract Type                                        |  |
| 7                                         | Relevant Delivery/Task Order Numbers (if applicable) |  |
| 8                                         | Subcontract Number/PO Number                         |  |
| 9                                         | Procuring agency                                     |  |
| 10                                        | Description of product or service                    |  |
| 11                                        | Period of performance - Start Date                   |  |
|                                           | Period of performance - End Date                     |  |
| 12                                        | CAGE Code (if not the same as Offeror, explain)      |  |

|    |                                                                                                                                                                                                                                                                                                                 |                                     |
|----|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| 13 | Dollar value of contract (Total)                                                                                                                                                                                                                                                                                |                                     |
|    | Dollar value of contract (Annualized)                                                                                                                                                                                                                                                                           |                                     |
| 14 | Brief Work Description and/or Program Responsibility for this past contract.                                                                                                                                                                                                                                    |                                     |
|    | PWS/SOW paragraphs from contract reference associated with the contractor performing services involving Contractor Owned Contractor Operated (COCO) Aircraft performing any of the following: Sonobuoy Launching, Operational Mission Support, Flight Test Operations, Operation of Specialized Mission Systems |                                     |
|    | PWS/SOW paragraphs from contract reference associated with operation of aircraft similar T/M/S, operating under 14 CFR Part 91 Operations, 14 CFR Part 135 Operations, or 13 CFR Part 43 Operations                                                                                                             |                                     |
|    | PWS/SOW paragraphs from contract reference associated with DCMA INST 8210-1(series) Operating Procedures, Endurance-based, overwater flight test or operational missions, or Integration of specialized mission systems                                                                                         |                                     |
| 15 | Date of last completed CPARs                                                                                                                                                                                                                                                                                    |                                     |
| 16 | Date past performance questionnaires were sent.                                                                                                                                                                                                                                                                 |                                     |
| 17 | Points of Contact who can validate performance on the past performance contract, specific delivery order or task order number referenced above.                                                                                                                                                                 |                                     |
| 18 | Gov't PCO or Commercial Purchasing Agent                                                                                                                                                                                                                                                                        | Name:Phone:Email:                   |
| 19 | Gov't ACO                                                                                                                                                                                                                                                                                                       | Name:<br>Phone:<br>Email:           |
| 20 | Gov't PM or Commercial PM                                                                                                                                                                                                                                                                                       | Name:<br>Phone:<br>Email:           |
| 21 | Other POC:                                                                                                                                                                                                                                                                                                      | Name:<br>Title:<br>Phone:<br>Email: |

### 3.2 Evaluation

#### **The burden of providing thorough and complete past performance and systemic improvement information remains with the Offeror.**

For each contract or delivery order reference identified in Attachment L-4 Table PP-1 (Past Performance Contract Data), the Offeror shall provide data regarding relevancy, past performance information (PPI), and demonstrated systemic improvement as described below, organized by contract reference. Offerors shall present information in the proposal to demonstrate the relevancy of the Prime's past performance with respect to this solicitation's requirements. For any contract references where the Prime is aware of problems, the Offeror shall describe the issues in section 3.2.b (PPI.) For each past performance problem identified, describe the status of the systemic improvement efforts in section 3.2.c (Demonstrated Systemic Improvement.)

- a. **Relevancy:** Offerors are required to explain what aspects of the contract references the Offeror deems relevant to this solicitation's requirements. To demonstrate relevancy, Offerors should provide a comparative analysis to this solicitation's requirements. In Annex A, Offerors shall provide one electronic copy of the Statement of Work (SOW), / Performance Based Work Statement (PBWS) from each of the referenced contracts identified in Table PP-1. Within the comparative analysis, Offerors should identify the relevant portions (sections, paragraphs and page numbers) of the referenced contract's SOW/PBWS to clearly identify how past tasks performed are similar to this solicitation's requirements. In addition, the referenced sections only need to be referenced/identified. Offerors shall not break out specific paragraphs separately from the complete SOW/PBWS.

To facilitate the relevancy determination, the Offeror shall provide an explanation of why multiple CAGE codes are proposed. In its explanation, Offerors shall identify all applicable CAGE codes along with their defined roles and responsibilities, and a description of all such changes in the organization of the company within Volume 1, Contract Administration when submitting past performance for CAGE code(s)/UEI that are different from the prime Offerors. In addition, the Offeror shall provide a narrative within this section explaining how the changes affects the relevance of any past performance contract references provided.

- b. **PPI:** Offerors shall provide a brief description of performance in delivering quality products in each of the areas identified below. Offeror shall include any information that demonstrates the level of performance obtained, where available; provide quantifiable measures/trends to demonstrate past and current performance. Also, describe past problems, including when they occurred, what the circumstances were surrounding the situation, and any consequences realized because of the problem. The Government will review past performance feedback as it relates to the following:

1. Quality Performance: Meeting technical requirements



2. Schedule Performance: Meeting schedule requirements
  3. Management Performance: Managing the contracted effort
  4. Small Business Subcontracting: Large Business Offerors shall show which efforts they met or exceeded Small Business, Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), HUBZone Small Business Historically Underutilized Business Zones (HUBZone), Small Disadvantaged Business (SDB), and Women-Owned Small Business (WOSB) small business utilization and subcontracting goals.
- c. **Demonstrated Systemic Improvement:** The Offeror shall identify systemic improvement actions taken to resolve any past problems identified in 3.2.b Past Performance Information. The Offeror shall provide the documented records of improvement results, preferably recorded in Government systems such as CPARS. The Offeror shall describe the techniques, elements, and tools used to correct problems on the past contract and, if applicable, how it may apply these techniques, elements, and tools on the solicitation requirements. The Offeror shall provide quantifiable evidence or metrics that substantiate or demonstrate systemic improvement claims to demonstrate that previous problems are unlikely to occur on the solicitation requirements. It is incumbent upon the Offeror to explain the relevance of the data provided and substantiate that improvements from past performance problems are being made. The Government does not assume the duty to search for data to cure the problems it finds in the information provided by the Offeror. The Government may consider discounting problems if the Offeror can demonstrate the correction of problems through demonstrated systemic improvement. Systemic Improvement is demonstrated when the Government can verify that the Offeror prevented the recurrence of past problems. Examples include the identification of the root cause of a problem, a corrective action plan that systemically addressed the past problem, a description of how and when the plan was implemented, documented timeframe to demonstrate successful implementation of the corrective action; and performance data, preferably through Government records, to show performance improvements.

#### 4. VOLUME 4 – PRICE

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

|                |                                  |
|----------------|----------------------------------|
| Attachment L-6 | CP-1 Pricing Sheet               |
| Attachment L-6 | CP-2 Government Fuel Cost        |
| Attachment L-6 | CP-3 Total Evaluated Price (TEP) |

##### 4.1 Contract Prices

The Offeror shall provide a copy of Section B of the solicitation populated with the CLIN unit prices and CLIN total prices using each CLIN's quantity value.

Provide the proposed price for each CLIN/SLIN using Pricing Sheet, Attachment L-6, CP-1. The Offeror shall provide a narrative for all priced CLINs describing the build-up of the proposed unit price, assumptions used for each CLIN, and the basis of estimate for the unit price proposed showing build-up calculations of the unit sell price. The Offeror shall explain any appearance of unbalanced pricing. Offerors are forewarned that if there are discrepancies between Section B, Attachment L-6 Pricing Sheet, and Volume 4 Price Narrative, Section B prevails.

#### **4.1.1 CLIN 0001 and CLIN 0002 Capability Stand Up**

The Offeror shall propose a unit price and a quantity of whole months up to a maximum of 9 months for CLIN 0001 and a minimum of 3 months for CLIN 0002. The combined total months for CLINs 0001 and 0002 shall not exceed 12 months. The Offeror's proposed unit price will be multiplied by their proposed quantity of months to develop the Offeror's total proposed price for CLINs 0001 and 0002 in Section B and the Pricing Sheet, Attachment L-6, CP-1. The quantity for CLIN 0003 represents the period of performance remaining after the completion of the transition activities under CLINs 0001 and 0002. For clarity, the quantity for CLIN 0003 is calculated using the following formula: 60 months - (Total Months Proposed for CLIN 0001 + Total Months Proposed for CLIN 0002).

The Offeror shall include costs associated with management, logistical, engineering and administrative efforts required for establishing GOPs/FOPs and obtaining Airworthiness certification of their aircraft. This also includes costs associated with airworthiness data review meetings and the Post Award Conference (PAC) (PWS paragraph 8.3.1) as well any travel costs incurred for these meetings. This shall not include aircraft acquisition or aircraft leasing costs.

#### **4.1.2 CLIN 0003 Monthly Fixed Cost**

The Offeror shall propose a unit price for this CLIN in Section B and in Pricing Sheet Attachment L-6. The unit price multiplied by the quantity of months is used to develop the total price for this CLIN in Section B. The Offeror shall include fixed costs that will be incurred regardless of the number of missions performed. It shall also include costs associated with Contractor Furnished Equipment (CFE), tools; full-time aircrew, non-touch support personnel, hull and liability insurance, aircraft modernization, uninsured damage, navigation services, refurbishment, computer-based maintenance programs, recurrent training, weather services, depreciation of the aircrafts, leasing etc. This also includes costs associated with Program Management Reviews (PMR) (PWS Paragraph 8.3.2) including any travel costs incurred for these meetings. The Offeror shall include all costs to perform calendar driven maintenance during the contract ordering period.

The following costs shall not be included in the price of this line item:

- a. Costs incurred by the Contractor which are associated with the variable pricing for flight services (CLIN 0004) e.g., Parts – airframe, avionics, engine consumables, engine restoration costs, landing/parking fees, inspection fees, dynamic components, lifetime limited parts, tools, passports, visas, shipment or trans-shipment of aircraft, supplies, etc.
- b. Costs for flights such as, but not limited to, maintenance test flights, the ferrying/transporting of personnel, aircraft or equipment to and from maintenance facilities, or to train aircrew, are to be included in the variable unit price and are not allowable as a direct (fixed) cost under this CLIN. Fuel costs shall not be charged to this

or any other CLIN as this is “dry” contract where the Government will provide appropriate fuel cards for each of the Contractor’s aircraft (PWS paragraph 5.10.1).

#### **4.1.3 CLIN 0004 Flight Services**

The Offeror shall propose a unit price. The unit price multiplied by the quantity of minutes is used to develop the total price for this CLIN in Section B and in Pricing Sheet Attachment L-6. The Offeror shall include all variable costs associated with flying aircraft capable of meeting the requirements of the PWS, including costs that are specific to the mission associated with this CLIN such as the costs per flight minute. It shall include costs for flying the aircraft, maintaining the aircraft, aircrew support personnel; equipment, tools, materials, spare parts, replacement parts, and time change items.

#### **4.1.4 CLIN 0005 Administrative & Technical Data (NSP)**

This CLIN is not separately priced. Therefore, the Offeror shall not propose any price for this CLIN.

### **4.2 Government Fuel Costs**

As stated in PWS paragraph 5.10.1, this is a “dry” contract, and the Government will provide access to fuel and provide fuel cards under the Aviation Into-Plane Reimbursement (AIR) card program for each of the Contractor’s aircraft. Offerors shall not include cost of fuel to fly Government missions in any CLINs. However, Government estimated fuel costs will be included in the Total Evaluated Price (TEP), therefore, for evaluation purposes only; the Offeror shall complete the Government fuel cost table provided as Attachment L-6, CP-2.

For calculating a fuel burn rate to insert into Attachment L-6, CP-2, use the SLAT Typical Profiles at PWS section 3.2.1.

### **4.3 TEP**

The TEP is calculated from the Offeror’s inputs on CP-1 and CP-2 automatically, to develop CP-3.

## **5. VOLUME 5 – SMALL BUSINESS**

The following is a list of Section L Attachments that the Offeror shall use to provide information for this volume:

Attachment L-7          Small Business Participation Commitment Document (SBPCD)

### **5.1 Small Business Participation Commitment Document (SBPCD)**

All Offerors (whether a Large (including non-profit entities) or Small Businesses) shall complete the provided Attachment L-7 SB-1 Small Business Participation Commitment Document

(SBPCD) and submit it in this Volume. (Note: FAR 15.304 does not exempt Small Businesses from submitting a SBPCD). The SBPCD shall list the planned small business participants and identify a minimum small business participation commitment of 10% of the total proposed contract price.

The SBPCD shall provide the Offeror's commitment for each of the following categories: Small Business (SB), Small Disadvantaged Business (SDB), Women-Owned Small Business (WOSB), Veteran-Owned Small Business (VOSB), Service-Disabled Veteran-Owned Small Business (SDVOSB), and HUBZone Small Business (HUBZone). Each small business participant identified in the SBPCD shall have an active registration in SAM or provide a written certification of its small business or socio-economic status consistent with the NAICS code size standard identified in the solicitation.

The Government intends to incorporate the SBPCD into the resultant contract as Attachment 4 in Section J.

The SBPCD is separate from, but shall be consistent with, the SB Subcontracting Plan (as required from Large Businesses). The Government advises Large Business Offerors that while the SB Subcontracting Plan must be submitted in accordance to be eligible for award, the acceptability of the content of that plan is part of the responsibility determination assessment and not part of the SBPCD evaluation.

## 5.2 Small Business (SB) Subcontracting Plan

Large Business Offerors shall provide their SB Subcontracting Plan conforming to the requirements of FAR 19.7 and DFARS 219.7 in this Volume. The PCO will review and approve the SB Subcontracting Plan of the successful Offeror(s) prior to contract award as part of the responsibility determination. The Government will incorporate the successful Offeror's approved Subcontracting Plan into the resultant contract as Attachment 5 in Section J. The Government will monitor the contractor performance against the plan during contract execution.

### CLAUSES INCORPORATED BY REFERENCE

|              |                                                                                                    |          |
|--------------|----------------------------------------------------------------------------------------------------|----------|
| 52.201-1     | Acquisition 360: Voluntary Survey                                                                  | SEP 2023 |
| 52.204-7     | System for Award Management                                                                        | NOV 2024 |
| 52.204-16    | Commercial and Government Entity Code Reporting                                                    | AUG 2020 |
| 52.204-22    | Alternative Line Item Proposal                                                                     | JAN 2017 |
| 52.216-1     | Type Of Contract                                                                                   | APR 1984 |
| 52.219-4     | Notice of Price Evaluation Preference for HUBZone Small Business Concerns                          | OCT 2022 |
| 52.237-1     | Site Visit                                                                                         | APR 1984 |
| 52.252-1     | Solicitation Provisions Incorporated By Reference                                                  | FEB 1998 |
| 252.204-7019 | Notice of NIST SP 800-171 DoD Assessment Requirements                                              | NOV 2023 |
| 252.204-7024 | Notice on the Use of the Supplier Performance Risk System                                          | MAR 2023 |
| 252.215-7010 | Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data | MAY 2024 |

252.215-7013 Supplies and Services Provided by Nontraditional Defense JAN 2023  
Contractors

# CLAUSES INCORPORATED BY FULL TEXT

## 252.204-7025 NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) Definitions. As used in this provision, controlled unclassified information (CUI), current, Cybersecurity Maturity Model Certification (CMMC) status, Cybersecurity Maturity Model Certification unique identifier (CMMC UID), Federal contract information (FCI), and Plan of action and milestones have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) Cybersecurity Maturity Model Certification (CMMC) level. The CMMC level required by this solicitation is: **CMMC Level 2 (Self)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation--

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) Plan of action and milestones. If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) CMMC unique identifiers. The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

## Section M - Evaluation Factors for Award

### SECTION M

### **Section M - Evaluation Factors for Award**

#### **M-1 EVALUATION FACTORS FOR AWARD**

##### **I. GENERAL INFORMATION**

The Government expects to select one Offeror based on its proposal providing the “best value” to the Government, all factors considered. "Best value" means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. Offerors are advised that proposals meeting the solicitation requirements with the lowest price may not be selected for an award if award to a higher-priced Offeror is determined to be more beneficial to the Government. However, the perceived benefits of the higher-priced proposal must merit the additional price.

##### **A. EVALUATION PROCESS**

The Government intends to evaluate each proposal and award a contract without discussions to the responsible Offeror whose offer, conforming to the solicitation, provides the greatest overall benefit to the Government, all factors considered. Therefore, Offerors are cautioned that their initial offer should contain the Offeror's best terms from a technical, past performance, and price standpoint. However, the Government reserves the right to conduct discussions and request proposal revisions if it is determined to be in the best interest of the Government. When a competitive range is established, the Government may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. The Government may use information other than that provided by the Offeror in its evaluation (past performance information, results of questionnaires, site surveys, cost models, etc.).

Non-compliance with the terms, conditions, or requirements set forth in the solicitation will be considered a deficiency. The Government may consider any exception or deviation to any term or condition of the RFP that is not expressly authorized by the RFP to be a deficiency, as defined in FAR 15.001. Additionally, any approach that relies on Government resources or operations (e.g., Government Furnished Property, Government Furnished Equipment, Government personnel/actions, Government Concept of Operation changes, etc.) to comply with a requirement, unless otherwise allowed, may be considered a deficiency. A proposal assessed with a deficiency will make the offer ineligible for award.

##### **B. EVALUATION FACTORS FOR AWARD**

Proposals will be evaluated using the factors listed below, where Technical is the most important factor. Past Performance is more important than Price. All evaluation factors other than Price, when combined, are significantly more important than Price. Small Business is evaluated as acceptable/not-acceptable and not included in the trade-off decision.

- A. Technical
- B. Past Performance
- C. Price
- D. Small Business

The proposal must demonstrate to the Government's satisfaction that the Offeror will provide a program that ensures the successful accomplishment of the solicitation requirements and overall program objectives. Proposal information provided for one factor may be used to assess other factors if the Government deems it appropriate. In addition, the Offeror's technical proposal will be reviewed to determine if it is consistent with the price proposal, where applicable, and reflects a clear understanding of the scope of work necessary to meet the solicitation requirements.

## **II. SPECIFIC INFORMATION**

### **A. TECHNICAL**

The Government will evaluate the proposal to determine the Offeror's understanding of, approach to, and ability to meet the solicitation requirements. The Government will assess the Offeror's Technical Proposal with respect to its compliance with the solicitation requirements and the risk associated with the Offeror's approach. These elements are not weighted or rated separately as part of the Technical factor. Offerors shall address all elements in its Technical proposal.

The evaluation will include an assessment of the following elements:

1. Aircraft performance requirements.
2. Aircraft modification plan.
3. Airworthiness data.
4. Integrated Master Schedule (IMS) for capability stand-up.
5. Proposed launch system to be utilized.

A Technical Rating and Technical Risk Rating will be assigned. The Technical Rating is an assessment of compliance with the solicitation requirements and merit which considers the benefits and detriments related to program performance and operations. The degree of benefit to the Government associated with strength(s) or significant strength(s) will be considered in determining whether the Offeror's approach and understanding of requirements rises to a level of being thorough or exceptional. The Technical Risk Rating considers the risk associated with the technical approach in meeting the requirement.

Additionally, a proposal that provides the Government with a capability, service, or resource that is not specifically required, but benefits the Government can have merit if it appreciably enhances performance and/or operations to benefit the Government.

The Technical Rating is an assessment of compliance with the solicitation requirements and merit which considers the benefits and detriments related to program performance and operations. The Technical Risk Rating considers the risk associated with the technical approach

in meeting the requirement. The Technical Risk Ratings of Low, Moderate, High, and Unacceptable will be used to relate the results of the evaluation.

Failure to address part or parts of the technical factor caused by a lack of information may be assessed as a significant weakness or multiple significant weaknesses. A combination of significant weaknesses that increase the risk of unsuccessful contract performance to an unacceptable level may be considered a deficiency.

Offerors are advised that during the evaluation process, a Technical Rating of “Unacceptable” or “Marginal”, or a Technical Risk Rating of “High” or “Unacceptable” is considered unawardable and may result in the entire proposal being found unacceptable and eliminated from the competition.

## **B. PAST PERFORMANCE**

The Government will evaluate the Offeror’s (defined in Section III., B. Other Evaluation Definitions) and (if applicable) its principal entities demonstrated past performance in delivering quality products and services. The past performance evaluation will be based on customer feedback on contracts in the performance areas of: 1) meeting quality requirements, 2) meeting schedule requirements, and 3) managing the contracted effort on similar programs. The recency and relevancy of the contract and past performance information, source of the information, context of the data, and general trends in contractor’s performance will be considered. However, only performance on recent and relevant contracts will be considered in the evaluation. Relevancy is defined in Section III., B. Other Evaluation Definitions. Problems not addressed by the Offeror will be considered to still exist. However, consideration for discounting problems may be given when those problems are addressed through demonstrated systemic improvement. The degree to which the Offeror can demonstrate that it has successfully applied systemic improvement to resolve past performance problems will be evaluated.

A separate Performance Confidence Assessment Rating will be assigned based on an integrated assessment of all performance areas. This assessment will address the Government’s level of confidence in the Offeror’s ability to successfully perform the required effort based on the Offeror’s (including principal entities’) relevant past performance and systemic improvement. In the case of an Offeror without a record of past performance or for whom information on past performance is not available, the Offeror will receive a rating of “Unknown” which is considered a “Neutral” rating. Under Past Performance, the Government will evaluate how well an Offeror has performed similar work before. As such, the term “performance record” in the Performance Confidence Assessment Rating definition is referring to the records that indicate how well the Offeror has performed on recent/relevant work (e.g., CPARs and questionnaires). When proposals are received from contractor entities specifically formed to propose on a particular acquisition (e.g., teams, joint ventures, etc.), the past performance evaluation will consider each individual team member.

## **C. PRICE**



The Government will evaluate the Offeror's Price proposal to determine if it is consistent with respect to the Offeror's technical approach, reflects a clear understanding of the solicitation requirements and contains no material imbalances. The Government may assess inconsistencies between the Technical and Price proposals as a proposal risk under the Technical evaluation. Additionally, the Government may assess imbalances or discrepancies identified within the Price proposal as proposal risk under the Technical evaluation.

The Government advises Offerors that if discrepancies exist between Section B, Attachment L-6 (Pricing Sheet), and the Volume 4 Price Narrative, Section B and Attachment L-6 shall prevail.

**Firm Fixed Price CLINs (0001-0004):**

In its evaluation, the Government will perform a price analysis to assess if the Offeror's proposed price is fair and reasonable. The Government may use various price analysis techniques such a comparison of the Offeror's proposed price to competing Offeror's prices in response to this solicitation, comparison to historical pricing for same or similar DoD contracts, comparison to the Government's independent price estimate, comparison to commercial and/or industry standards, among other techniques to perform the price analysis.

**Not Separately Priced (NSP) CLIN (0005)**

This CLIN is NSP and therefore will not be included in the Price evaluation.

**Total Evaluated Price (TEP)**

The Total Evaluated Price (TEP) is the sum of the following:

1. The total proposed price for CLINs (0001–0004), which is the sum of the proposed unit price multiplied by the proposed Section B Quantities for these CLINs.
2. Costs to the Government: This includes the offeror's fuel costs provided in the offeror's proposal RFP attachment L-6 plus any Government adjustments for inconsistencies in the fuel burn calculation, for T/M/S supporting CLIN 0004.

**D. SMALL BUSINESS**

**1. SMALL BUSINESS PARTICIPATION COMMITMENT DOCUMENT (SBPCD)**

The Government will evaluate the Offeror's SBPCD on an acceptable/unacceptable basis. The Government will evaluate the extent of proposed participation/commitment of small businesses participants in the performance of this acquisition (as small business prime Offerors or small business subcontractors). The Government will review the Offeror's proposed SBPCD to ensure that the Minimum Quantitative Requirement (MQR) of at least 15% of the total proposed contract price is met. Offerors that do not demonstrate a 15% commitment will be assessed with an Unacceptable rating and are ineligible for award. The Government will incorporate the successful Offeror's SBPCD into the resultant contract as an Attachment 4 in Section J.

The Government may consider the following when evaluating the SBPCD:

- The extent to which firms as defined in FAR Part 19 are specifically identified in proposals

- The extent to which Offerors demonstrate substantive commitment to small business firms, such as, letters of commitment, Joint Ventures, mentor/protégé agreements, or other demonstrations of commitment (i.e., binding commitments will become enforceable/contractual requirements)
- Identification of the type and variety of the work small firms are to perform (i.e., binding commitments will become enforceable/contractual requirements)
- The extent of participation of small business prime offerors and small business subcontractors in terms of the value of the total acquisition (total contract value) (i.e., binding commitments will become enforceable/contractual requirements)
- The extent to which the Offeror provides detailed explanations/documentation supporting the proposed quantitative participation
- Extent to which the Offeror complied with requirements of FAR 52.219-8, Utilization of Small Business Concerns (i.e., binding commitments will become enforceable/contractual requirements)
- Extent to which the Offeror complied with requirements of FAR 52.219-9 Small Business Subcontracting Plan (when applicable) (i.e., binding commitments will become enforceable/contractual requirements)

## 2. SMALL BUSINESS (SB) SUBCONTRACTING PLAN

The Government will also evaluate the SB Subcontracting plan provided by Large Business Offerors on an acceptable/unacceptable basis. The Government will evaluate whether the SB Subcontracting Plan conform to the requirements of FAR 19.7 and DFARS 219.7. This evaluation is part of the responsibility determination, which requires Offerors to provide a SB Subcontracting Plan, Comprehensive or Commercial SB Subcontracting Plan that is acceptable to the Contracting Officer. The successful Offeror's approved Annex B (Small Business Subcontracting Plan) will be incorporated into the resultant contract as Attachment 5 of contract Section J.

## III. DEFINITIONS

### A. EVALUATION RATINGS AND RISK ASSESSMENT DEFINITIONS –

#### EVALUATION RATINGS DEFINITIONS

Technical Ratings: The Technical Rating assignments reflect the Government's assessment of the Offeror's technical solution for meeting the Government's requirement.

|        |             |                                                                                                                                                            |
|--------|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Blue   | Outstanding | Proposal demonstrates an exceptional approach and understanding of the requirements, contains multiple strengths and/or at least one significant strength. |
| Purple | Good        | Proposal demonstrates a thorough approach and understanding of the requirements and contains at least one strength or significant strength.                |
| Green  | Acceptable  | Proposal demonstrates an adequate approach and understanding of the requirements.                                                                          |

|        |              |                                                                                                                           |
|--------|--------------|---------------------------------------------------------------------------------------------------------------------------|
| Yellow | Marginal     | Proposal has not demonstrated an adequate approach and understanding of the requirements.                                 |
| Red    | Unacceptable | Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable. |

### **RISK ASSESSMENT DEFINITIONS**

Technical Risk Rating: The risk assignments reflect the Government's assessment of potential for disruption of schedule, increased costs, degradation of performance, the need for increased Government oversight, or the likelihood of unsuccessful contract performance.

| Rating       | Description                                                                                                                                                                                                                                                                                              |
|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Low          | Proposal may contain weakness/weaknesses which have low potential to cause disruption of schedule, or degradation of performance. Normal contractor emphasis and normal Government monitoring will likely be able to overcome any difficulties.                                                          |
| Moderate     | Proposal contains a significant weakness or combination of weaknesses which may have a moderate potential to cause disruption of schedule, or degradation of performance. Special contractor emphasis and close Government monitoring will likely be able to overcome any difficulties.                  |
| High         | Proposal contains a significant weakness or combination of weaknesses which is likely to have high potential to cause significant disruption of schedule, or degradation of performance. Special contractor emphasis and close Government monitoring will unlikely be able to overcome any difficulties. |
| Unacceptable | Proposal contains a deficiency or a combination of significant weaknesses that causes an unacceptable level of risk of unsuccessful performance.                                                                                                                                                         |

### **PERFORMANCE CONFIDENCE ASSESSMENT DEFINITIONS**

| Rating                  | Description                                                                                                                                                                                                                                                                  |
|-------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Substantial Confidence  | Based on the Offeror's recent/relevant performance record, the Government has high expectations that the Offeror will successfully perform the required effort.                                                                                                              |
| Satisfactory Confidence | Based on the Offeror's recent/relevant performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort.                                                                                                       |
| Neutral Confidence      | No recent/relevant performance record is available or the Offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The Offeror may not be evaluated favorably or unfavorably on the factor of past performance. |

|                    |                                                                                                                                                                         |
|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Limited Confidence | Based on the Offeror's recent/relevant performance record, the Government has a low expectation that the Offeror will successfully perform the required effort.         |
| No Confidence      | Based on the Offeror's recent/relevant performance record, the Government has no expectation that the Offeror will be able to successfully perform the required effort. |

For the Past Performance factor, the Performance Confidence Assessment rating assignments reflect the Government's confidence that the Offeror will successfully perform the solicitation's requirements based on the Offeror's relevant past performance and systemic improvement.

## **B. OTHER EVALUATION DEFINITIONS**

|                                   |                                                                                                                                                                                                                                                |
|-----------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Strength                          | An aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.                                                                  |
| Significant Strength              | An aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.                                         |
| Risk Reducer                      | An aspect of an Offeror's proposal that reduces risk in a way that will be advantageous to the Government during contract performance.                                                                                                         |
| Weakness (FAR 15.001)             | "Weakness" means a flaw in the proposal that increases the risk of unsuccessful contract performance.                                                                                                                                          |
| Significant Weakness (FAR 15.001) | A "Significant Weakness" in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance.                                                                                                                   |
| Uncertainty                       | Any aspect of a non-price factor proposal for which the intent of the offer is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake). |
| Deficiency (FAR 15.001)           | "Deficiency" is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.              |

|                                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Reasonableness (from FAR 31.201-3) | <p>The cost is reasonable if, in its nature and amount, it does not exceed that which would be incurred by a prudent person in the conduct of competitive business. What is reasonable depends upon a variety of considerations and circumstances, including:</p> <ul style="list-style-type: none"> <li>(1) Whether it is the type of cost generally recognized as ordinary and necessary for the work to be performed.</li> <li>(2) The contractor's responsibilities to the Government.</li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| Completeness                       | <p>The adequacy of the cost proposal, in relation to the PWS, considering whether all costs are included or accounted for. All PWS requirements must be included.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| Recency                            | <p>A measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant. Past performance or corporate experience references that are older than 5 years from the due date of the proposal is not considered recent and therefore is not considered relevant. As it pertains to recent past performance, the more recent past performance references are considered better indicators of future performance.</p>                                                                                                                                                                                                                                                                                                                                                                                                                 |
| Relevancy                          | <p>A measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance or corporate experience examples and the source solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| Relevant (R)                       | <p>Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.</p> <p>For this solicitation, a past contract is considered to have essentially the same scope, magnitude, and complexity as the solicitation when the past contract involved the items below:</p> <ul style="list-style-type: none"> <li>• <b>Scope:</b> Each contract reference must include services involving a Contractor-Owned, Contractor-Operated (COCO) aircraft performing at least one of the following: <ul style="list-style-type: none"> <li>○ Sonobuoy launching;</li> <li>○ Operational mission support;</li> <li>○ Flight test operations; or</li> <li>○ Operation of specialized mission systems.</li> </ul> </li> </ul> <p>AND at least one of the following:</p> <ul style="list-style-type: none"> <li>○ 14 CFR Part 91 Operations; or</li> <li>○ 14 CFR Part 135 Operations.</li> </ul> |

|                    |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|--------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                    | <p>AND the following:</p> <ul style="list-style-type: none"> <li>○ 14 CFR Part 43 Operations</li> <li>• <b>Magnitude:</b> Contract reference total annualized value of \$5M or greater.</li> <li>• <b>Complexity:</b> Contract references must include services involving at least one of the following: <ul style="list-style-type: none"> <li>○ DCMA Instruction 8210-1(series) Contractor's Flight and Ground Operations;</li> <li>○ Execution of endurance-based, overwater flight test or operational missions; or</li> <li>○ Integration and certification of specialized mission systems.</li> </ul> </li> </ul>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| Not Relevant (NR)  | <p>Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires (i.e., does not meet the above definitions of (R); or contracts or the portion of those contracts submitted by the Offeror that meet any of the conditions below:</p> <ul style="list-style-type: none"> <li>i. Contracts from an entity that does not have a defined role and responsibility identified in Table PP-1 (Past Performance Contract Data);</li> <li>ii. Contracts from an entity that does not have any work that matches the entity's proposed role and responsibility identified in Table PP-1;</li> <li>iii. Contracts from any entity that is not a principal entity, including those who does not demonstrate the requisite work share in the Price Volume;</li> <li>iv. Contracts from a different physical location (e.g., with different CAGE code/DUNS) than the entity proposed in Table PP-1; or</li> <li>v. Contracts, or those portions of contracts, whose performance is older than 5 years from the proposal due date. (If only a portion of a contract is older than 5 years, then only that portion is not relevant for reasons of recency.)</li> </ul> |
| Principal Entities | <p>The Government will only review the past performance of Principal Entities. Principal Entities are defined as: 1) the Offeror (prime); 2) any first-tier subcontractor performing at least 15% of the total proposed price; 3) any member of a joint venture; and 4) any first-tier subcontractor performing one of the PWS critical functions, regardless of the percentage of work.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

